

Irish Ecclesiastical Record, Volume 1, May 1865

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1865**

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Title: Irish Ecclesiastical Record, Volume 1, May 1865

Release date: March 21, 2012 [eBook #39226]

Language: English

Other information and formats: www.gutenberg.org/ebooks/39226

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ECCLESIASTICAL RECORD, VOLUME 1, MAY 1865 ***

Irish Ecclesiastical Record

Volume 1

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The See Of Derry.

The territory of Cineal-Eoghain, from a very early period, formed a distinct diocese, which took its name from the church of Arderath, now Ardstraw, situated on the River Derg, and founded by St. Eugene, first bishop of this see. In the synod of Rathbreasail, an. 1110, it is called “Dioecesis Ardsrathensis” though probably in that very year the city of Derry was chosen for the episcopal residence. “Sedes Episcopalis”, writes Dr. O’Cherballen, bishop of the see in 1247, “a tempore limitationis Episcopatum Hyberniae in villa Darensi utpote uberiori et magis idoneo loco qui in sua Dioecesi habeatur, extitit constituta”. For some years this arrangement continued undisturbed, till the appointment of Dr. O’Coffy, who about the year 1150 transferred his see to Rathlure, a church dedicated to St. Luroch; and subsequently, for one hundred years, we find the see designated “Dioecesis Rathlurensis”, or “de Rathlurig”, under which name it appears in the lists of Centius Camerarius.

Dr. Muredach O’Coffy was a canon regular of the order of St. Augustine, and “was held in great repute for his learning, humility, and charity to the poor”—(Ware). The old Irish annalists style him “the sun of science; the precious stone and resplendent gem of knowledge; the bright star and rich treasury of learning; and as in charity, so too was he powerful in pilgrimage and prayer”. He assisted at the Synod of Kells, which was convened by Cardinal Paparo in 1152, and in the catalogue of its bishops he is styled from the territory occupied by his see, *the Bishop of Cineal-Eoghain*. His death is marked in our annals on the 10th of February, 1173/4.

Amlaf O’Coffy succeeded the same year, and is also eulogized [pg 354] by our annalists as “a shining light, illuminating both clergy and people”. He was translated to Armagh in 1184, but died the following year. Our ancient records add that “his remains were brought with great solemnity to Derry and interred at the feet of his predecessor”.

Florence O’Cherballen next governed the see, from 1185 to 1230; whilst the episcopate of his successor, Friar German O’Cherballen, embraced well

nigh half a century, extending from 1230 to his death in 1279. It was during the administration of this last-named bishop that the episcopal see was once more definitively fixed in Derry. The Holy See, by letter of 31st May, 1247, commissioned the Bishop of Raphoe, the Abbot of the monastery of SS. Peter and Paul in Armagh, and the Prior of Louth, to investigate the reasons set forth by Dr. Germanus for abandoning the church of Rathlure. The following extract from the Papal letter preserves to us the chief motive thus alleged by Bishop Germanus:

“Cum villa Rathlurensis pene sit inaccessibilis propter montana, nemora et paludes, quibus est undique circumcincta, aliasque propter sterilitatem ipsius et necessariorum defectum nequeat ibi dictus Episcopus vel aliquis de suis canonicis residere, nec clerus ejusdem dioecesis illuc convenire ad synodum et ad alia quae saepius expedirent praefatus episcopus nobis humiliter supplicavit ut utilitatibus Rathlurensis Ecclesiae, ac cleri ejusdem misericorditer providentes sedem ipsam reduci ad locum pristinum Darenssem villam videlicet de benignitate Sedis Apostolicae faceremus”—(*Mon. Vatic.* pag. 48).

It was also added by Dr. O'Cherballen, that his predecessor, O'Coffy, had himself been born in Rathlure, and that it was through love for his native district he had, by his own authority, transferred the episcopal seat from Derry to Rathlure (illectus natalis soli dulcedine transtulit motu propriae voluntatis).

The appointed deputies approved of the resolution taken by Bishop Germanus, and a few years later (1254), in reply to the Chapter of Derry, the same Pope Innocent IV. thus confirmed this translation of the see:

“Cum, sicuti ex tenore vestrae petitionis accepimus, sedes Anichlucensis¹ Ecclesiae de speciali mandato nostro et assensu etiam venerabilis fratris nostri Archiepiscopi Armachani loci metropolitani ad Darenssem Ecclesiam sit translata, nos vestris supplicationibus inclinati translationem hujusmodi, sicut provide facta est, et in alicujus [pg 355]praejudicium non redundat, ratam et firmam habentes, eam auctoritate

Apostolica confirmamus. Datum Neapoli, secundo Nonas Novembris, Pontificatus nostri anno duodecimo”—(*Ibid.*, 64).

By a previous letter he had, as early as the first of July in the fourth year of his pontificate, in anticipation of this translation of the see, granted to the chapter of the diocese of Derry the same privileges, indulgences, and other special favours which it had hitherto enjoyed in Rathlure (*Ib.*, pag. 48).

The successor of Bishop Germanus was Florence O'Cherballen, who held the see from 1279 to 1293. Five other bishops then came in rapid succession. Henry of Ardagh, from 1294 to 1297; Geoffry Melaghlin, from 1297 to 1315; Hugh or Odo O'Neal, from 1316 to 1319; Michael Melaghlin, from 1319 to about 1330; and Maurice, from about 1330 to 1347.

On the death of the last-named bishop, a Dominican, by name Symon, was appointed by Pope Clement VI. to rule the See of Derry. He had indeed already been nominated by brief, dated the 5th of the Ides of May, 1347, to the diocese of Clonmacnoise, but the aged and infirm bishop of that see, who was reported to have passed to a better life, was not yet deceased, and hence, on the vacancy of Derry, Bishop Symon was, by brief of 18th December, 1347, appointed successor of St. Eugene. From the first brief, which nominated him to Clonmacnoise, we learn that Friar Symon was Prior of the Dominican fathers of Roscommon, and was remarkable for his zeal, his literary proficiency, and his manifold virtues. The brief of his appointment to Derry adds the following particulars:

“Dudum ad audientiam apostolatus nostri relatione minus vera perlata, quod Ecclesia Cluanensis per obitum Venerabilis fratris nostri Henrici Episcopi Cluanensis qui in partibus illis decessisse dicebatur, vacabat: Nos credentes relationem huiusmodi veram esse, de te ordinis fratrum Praedicatorum professore eidem Ecclesiae duximus providendum, praeficiendo te illi in Episcopum et pastorem: et subsequenter per Ven. fratrem nostrum Talayrandum Episcopum Albanensem tibi apud sedem Apostolicam fecimus munus consecrationis impendi. Cum autem sicut postea vera relatio ad nos perduxit praefatus Henricus tempore provisionis huius modi ageret, sicut agere dignoscitur, in humanis, tu nullius Ecclesiae Episcopus remansisti.

Postmodum vero Ecclesia Darensi, per obitum bonae memoriae Mauricii Episcopi Darensis qui extra Romanam curiam diem clausit extremum, pastoris solatio destitute, Nos ... cupientes talem eidem Darensi Ecclesiae praeesse personam quae sciret, vellet et posset eam in suis manutenere juribus ac etiam adaugere, ipsamque praeservare a noxiis et adversis, post deliberationem quam super his cum fratribus nostris habuimus diligentem, demum ad te consideratis grandium virtutum meritis, quibus personam tuam Dominus insignivit, convertimus oculos nostrae mentis, etc. Datum Avinione [pg 356]XV. Kalend. Januarii Pontif. Nostri anno octavo”—(*Mon. Vatic.*, pag. 292).

Bishop Symon seems to have held the see till the close of this century, and the next bishop that we find was John, Abbot of Moycoscain, or *de claro fonte*, who was appointed to Derry by brief of Pope Boniface IX. on 19th August, 1401. Of his immediate successors we know little more than the mere names. William Quaplod, a Carmelite and a distinguished patron of literary men, died in 1421. Donald for ten years then ruled the diocese, and resigned in 1431; his successor, John, died in 1456. A Cistercian monk, named Bartholomew O'Flanagan, next sat in the see for five years; and Nicholas Weston, a canon of Armagh, who was consecrated its bishop in 1466, held it till his death in 1484.

Donald O'Fallon, an Observantine Franciscan, was advanced to this see by Pope Innocent VIII. on the 17th of May, 1485: “he was reckoned a man of great reputation in his time for learning, and a constant course of preaching through all Ireland, which he continued for full thirty years”—(*Ware*). He died in the year 1500.

James Mac Mahon is the first bishop whose name appears in the sixteenth century. He was Commendatory Prior of the Abbey of SS. Peter and Paul, at Knock, in the county Louth, and died in December, 1517.

William Hogeson, which is probably a corruption of the Irish name *O'Gashin*, was appointed his successor by Pope Leo X. on 8th of August, 1520. He belonged to the order of St. Dominic, and seems to have administered the see till 1529.

Roderick or Rory O'Donnell, Dean of Raphoe, was chosen by Pope Clement VII., on 19th September, 1529, to occupy the see of Derry. This bishop was very much opposed to the religious innovations which Henry VIII. endeavoured to introduce into the Irish Church. In the *State Papers* (vol. i. pag. 598) there is a letter dated 14th March, 1539, and addressed by Lord Cromwell to the English king, in which the following eulogy is passed on Dr. O'Donnell: "Also there be letters long from an arrant traitor, Rorick, Bishop of Derry, in your grace's land of Ireland, his hand and great seal at it, to the Bishop of Rome, declaring the calamities of the Papists in Ireland". It was in the preceding year that Bishop Roderick had mortally offended the agents of King Henry by his efforts to preserve from their grasp the youthful Gerald, who, though yet in his boyhood, was chief of the Geraldines, and destined, it was hoped, to become one day the rallying point of a confederacy of the Irish chieftains. In the month of May Gerald and his faithful escort passed without [pg 357] molestation from the south to the north of Ireland, being hospitably received in Thomond, Galway, and Sligo; and they were safely entrenched within the barriers of Tyrconnell before the government spies had even caught the intelligence of this journey. On the 28th of June the Earl of Ormonde wrote a long letter to the council of Ireland, giving information of the movements of young Gerald. From this letter we learn that it was an Irish rhymist that acted as his spy amongst the Northern chieftains, and that, according to the latest intelligence received from him, "twenty-four horsemen, well apparrelled", had been appointed to wait upon the young Geraldine. The King of Scotland, too, solicited the Irish princes to commit Gerald to his care. However, in another letter, of 20th July, the same earl writes that this scheme was not pleasing to O'Neil and O'Donnell, but "the Bishop O'Donnell (of Derry), James Delahoyde, Master Levrous, and Robert Walshe, are gone as messengers to Scotland, to pray aid from the Scottish king; and before their going, all the gentlemen of Ulster, for the most part, promised to retain as many Scots as they should bring with them, at their own expense and charges during the time of their service in Ireland"—(*St. Pap.*, iii. 52). Another information further states that as a Christmas present in December, 1538, Art Oge O'Toole had sent to Gerald "a saffron shirt trimmed with silk, and a mantle of English cloth fringed with silk, together with a sum of money"—(*Ibid.*, pag. 139). And a few months later Cowley writes from Dublin to the English court, that "there never was seen in

Ireland so great a host of Irishmen and Scots, both of the out isles and of the mainland of Scotland; whilst at the same time the pretended Earl of Desmond has all the strength of the west”—(*Ibid.*, pag. 145). It is not necessary to pursue the subsequent events of this confederacy, as we have no express documents to attest the share taken in it by the Bishop of Derry. One further fact alone connected with our great prelate has been recorded by our annalists, and it, too, regards the closing scene of his eventful life, viz., that before his death he wished to become a member of the Franciscan order, and dying on the 8th of October, 1550, “he was buried in the monastery of Donegal in the habit of St. Francis”—(*Four Mast.*, v. 1517).

Eugene Magennis, the next bishop, governed the see from 1551 to 1568. It was during his episcopate that the venerable church and monastery of St. Colomba, together with the town of Derry, were reduced to a heap of ruins. The fact is thus narrated by Cox: “Colonel Saintlow succeeded Randolph in the command of the garrison, and lived as quietly as could be desired; for the rebels were so daunted by the former defeat that they did not dare to make any new attempt; but unluckily, on the 24th [pg 358] day of April (1566), the ammunition took fire, and blew up both the town and the fort of Derry, whereby twenty men were killed, and all the victuals and provisions were destroyed, and no possibility left of getting more, so that the soldiers were necessitated to embark for Dublin”—(*Hist.*, part i. pag. 322). This disaster was regarded at the time as a divine chastisement for the profanation of St. Columba's church and cell, the latter being used by the heretical soldiery as a repository of ammunition, whilst the former was defiled by their profane worship—(*O'Sulliv.*, pag. 96).

The next bishop was Raymond O'Gallagher, who, when receiving the administration of the see of Killala, in 1545, is described in the Consistorial Acts as “clericus dioecesis Rapotensis in vigesimotertio anno constitutus”. It was also commanded that after four years, *i.e.* when he would have attained his twenty-seventh year, he should be consecrated Bishop of Killala. In 1569, he was translated from that see to Derry, which he ruled during the many perils and persecutions of Elizabeth's reign, till, as Mooney writes, “omnium Episcoporum Europae ordinatione antiquissimus”, he died, full of years, on the 15th of March in 1601. In a government memorial of 28th July, 1592, Dr. O'Gallagher is thus noticed: “First in Ulster is one

Redmondus O'Gallagher, Bishop of Derry.... The said Bishop O'Gallagher hath been with divers governors of that land upon protection, and yet he is supposed to enjoy the bishoprick and all the aforesaid authorities these xxvi years and more, whereby it is to be understood that he is not there as a man without authority and secretly kept”—(*Kilken. Proceedings*, May, 1856, pag. 80). The xxvi of this passage has led many into error as to the date of Dr. O'Gallagher's appointment to Derry, which, reckoning back from 1592, should be placed in 1567. However, that numeral probably is a misprint for xxiii, such mistakes being very frequent in the mediaeval manuscripts, as well as in more modern publications. The following extract from the papers of Cardinal Morone in the Vatican archives, will serve to show that in 1569 the see was vacant by the death of Bishop Eugenius:—

“Litterae Reverendissimi Armachani ad Patrem Polancum: Quod Daniel ab ipso nominatus fiat Episcopus Darensis: contentio de Episcopatu Clogherensi inter duos, videtur ponendus tertius: Rapotensis et Darensis non iverunt ad concilium Provinciale propter bella: Archiepiscopus Armachanus haberet suam Ecclesiam si vellet consentire Reginae: posset mitti subsidium pro Armachano ad Praesidentem Collegii Lovaniensis: Archiepiscopus Armachanus male tractatur in carceribus”.

This minute of Cardinal Morone bears no date, but is registered with a series of papers of 1568 and 1569. The Father [pg 359] Polanco to whom the Primate's letter was addressed, was the Procurator-General of the Society of Jesus, and was the same who was deputed to be bearer of the blessing of the Holy Father to the dying founder of that great order. To the preceding *minute* are added the following remarks, which seem to have been presented to the Cardinal by Father Polanco:—

“Archiepiscopus Armachanus scribit expedire ut tertius nominetur Episcopus pro Clogherensi Dioecesi, non tamen favet Domino Milero. Causa posset committi in partibus D. Episcopo Accadensi et aliquibus aliis comprovincialibus Episcopis.

“Episcopatus Darensis in dicta Provincia Armachana vacat nunc per obitum Eugenii ultimi Episcopi. Duo Hiberni dictae Dioecesis pro eo obtinendo

venerunt ad curiam: viz. Cornelius O'Chervallan cum quibusdam litteris Patris David Wolff et cum aliis Rectoris Lovanii. Item Magonius (Mac Mahon) Abbas commendatus litteris Episcoporum Rapotensis et Kilmorensis cum approbatione capituli Darensis”.

Dr. O'Gallagher, however, was the person chosen by the Holy See, and was proclaimed in consistory before the close of 1569. A few years later we find faculties communicated to him by Rome for his own diocese, and for the whole province of Armagh, “quamdiu venerabilis frater Richardus Archiepiscopus Armachanus impeditus a Dioecesi et Provincia Armachana abfuerit”—(13 April, 1575, *Ex. Secret. Brev.*). About 1594 other special faculties were again communicated to him through Cardinal Allan—(ap. *King, Hist.*, pag. 1213); and we soon after meet with him in the camp of O'Donnell, when that chieftain was gathering his forces to cut short the military career of General Norris: “There were there”, writes O'Sullivan, “some ecclesiastics, and especially Raymond O'Gallagher, Bishop of Derry, and Vice-Primate of Ireland, who absolved from the excommunication which they had incurred, those troops that passed from the Elizabethan ranks to the Catholic army”—(*Hist. Cath.*, p. 181). It was in 1596 that Norris set out with about 10,000 men to invade North Connaught and Tyrconnell. That general was flushed with his victories in France and Belgium, nevertheless he was obliged to ignominiously retreat from the Ulster frontiers, being unable even to bring to battle the chosen army of 5,000 men which was led by the brave O'Donnell.

On the 22nd of July, 1597, an Irishman named Bernard O'Donnell was arrested at Lisle, and brought before the royal court, accused of carrying on treasonable intercourse with the Spanish government, and of being bearer of despatches from the Irish bishops and chieftains to the authorities in Spain and Rome. From one of the questions proposed to him at his cross-examination, [pg 360] we glean some further particulars connected with our Bishop of Derry:—

“Respondes tibi nulla fuisse negotia ab Hibernis commissa: et tamen reperimus prae manibus tuis litteras cujusdam Gabrielis Vasci (Vasquez), Theologi Societatis Jesu ex Hispania decimo die mensis Junii superioris

(1596) scriptis Romam ad Franciscum Rodrigum (Rodriquez) Societatis Jesu, quibus te illi unice commendat scribitque te eo profecturum fuisse negotiorum publicorum causa. Simul etiam invenimus exemplum manu tua scriptum epistolae cujusdam a Remundo Derensi Episcopo ad summum Pontificem, ex qua apparet, te, post tuum ex Hispania ad Hibernos reditum, nobiles Hibernos firmasse et illis animum addidisse ad arma suscipienda contra Regnam Angliae: idemque rogat summum Pontificem, ut tibi fidem adhibeat in multis quae illi dicenda tibi commisit. Invenimus etiam prae manibus tuis exemplum litterarum manu tua exaratum quibus O'Nellus ille summum Pontificem rogat ut tibi fidem adhibeat non modo in his quae illi dicturus eras de beneficiorum Ecclesiasticorum dispensatione apud Hibernos, sed etiam de omnibus rebus publicis Hibernorum? *Resp.* Agnosco equidem illa omnia exemplaria litterarum fuisse mea manu scripta: sed ad cumulandam commendationem meam”.

Fortunately, appended to this examination, the letter itself of the Bishop of Derry has been preserved to us. We present it in full to the reader, as it is the only letter of this great bishop that the calamitous era of persecution has permitted to reach us:—

“Copie de lettre escrite au Pape par Remond Derensis Episcopus.

“Tuam Sanctitatem latere non arbitramur quam alacri et excelso animo nostrae nobilitatis praecipui, Sancti haud dubie Spiritus instinctu, tyrannicae Anglorum pravitati ausi sunt resistere: omnem ipsorum virulentiam et Satanici furoris artificia, aperto Marte viriliter irritando. Tametsi quis facile enumeret quae quotidie volvantur et emergant quibus ut animum adderet, ipsosque in hoc pulcherimo instituto spe subsidii confirmaret, stabiliretque, cum lator praesentium N. (sic.) ex Hispania novissime venisset, cuncta ita uti sunt Catholicae majestati fideliter relaturus, volumus atque monemus ut Tua quoque Sanctitas fidem incunctanter eidem adhibeat; ac luctuosae tuae Hiberniae et innumeris cladibus ab haereticis jamdiu afflictae, squalidam ac funestam faciem benigno vultu aspiciat et egregiam hanc occasionem divinitus, ut credimus, oblatam opportune arripiat, memor quam eadem esse soleat occipiti calvo: suisque fidelissimis non modo ab ineunte Christianismo clientibus, sed ab aliquot annorum centuriis regio jure subditis, quam maturee

poterit clementer prospiciat, ac expectationis nostrae ac Tabellarii, cui pleraque Tuae Sanctitati nuncianda relinquimus, desiderio satisfaciat: cujus etiam nos, generis, industriae, nobilitatis, ac sinceri et vehementis in religionem et patriam affectus, rationem habentes, Tuam oramus Sanctitatem ut eundem benigno favore prosequatur, ipsique de dignitate N. providere non cunctetur nostrum in hac [pg 361]re iudicium auctoritate sua comprobando”—(*St. Pap.*, Public Rec. Off. London).

With this evidence before him, the reader may fully appreciate the favourite modern theory of the defenders of the Protestant Establishment, that, forsooth, the Irish bishops during Elizabeth's reign abandoned the faith of their fathers, and became liege servants of the church by law established! Dr. Cotton when speaking of our see makes a somewhat more reserved, but equally erroneous statement: “Redmond O’Gallagher”, he says, “was bishop at this time, but whether recognised as such by Queen Elizabeth and the Protestant Church *does not appear*”—(*Fasti*, iii. 315). Why, it does appear as plainly as the noon-day sun that he was the determined enemy of the Protestant queen and her establishment: throughout his whole episcopate he was a devoted pastor of the Catholic Church, and thus his fidelity and devotion to the cause of God merited for him in death the martyr's crown. First on the list of those who suffered for the faith during the reign of Elizabeth is reckoned by Dr. Mathews, Archbishop of Dublin, in 1623, “Redmondus Galluthurius Darensis Episcopus et Martyr”—(*Relat. ad. S. C. de Prop. Fid.*) Mooney, writing in 1617, also styles him a martyr: “Episcopus Redmondus Gallaher martyr obiit anno 1601”; and O’Sullivan Beare, about the same time, adds some of the circumstances of his death: “Raymundus O’Gallacher”, he writes, “Derii vel Luci Episcopus, ab Anglis bipennibus confessus, et capite truncatus annum circiter octogesimum agens”—(*Hist. Cath.*, pag. 77). The Four Masters (ad an. 1601) also mention his being put to death by the English; and Rothe reckons him amongst those who suffered for the faith. Tradition still points out the spot on which the venerable bishop was slain, almost midway on the high road between O’Kane’s Castle and Dungiven. (See Dr. Kelly’s *Essays*, with the additions of Dr. M’Carthy: Dublin, 1864, pag. 425).

It now only remains to notice some few popular errors connected with this see.

1. On account of the old Latin form of the name of this see, *i.e. Darensis*, it has frequently been confounded with the Diocese of Kildare. Thus, not to mention more recent examples, Ware severely criticises Bale of Ossory for falling into this mistake—(*Bishops*, pag. 190). The chief criterion for distinguishing between the two sees, is the mention which is generally made of the metropolitan to whom the brief is addressed, or of the ecclesiastical province to which the diocese belongs.

2. Dr. King notices as an improbability that O'Gallagher could have been bishop for fifty-two years, and, nevertheless, be only (as Dr. King imagines) seventy years of age at his death. However, true dates are sure always to mutually correspond. [pg 362] Referring to the Consistorial Acts, cited above, it appears that in 1545 Dr. O'Gallagher was in his twenty-third year, and that a dispensation was then granted to him to be consecrated bishop in his twenty-seventh year: hence, at his death in 1601, Dr. O'Gallagher may very well have attained the fifty-second year of his Episcopate, whilst he will be found, not indeed in his seventieth year, but, as O'Sullivan writes, “circa octogesimum annum agens”.

3. The succession of bishops in the See of Derry affords a practical refutation of the novel theory so fashionable now-a-days amongst the clergy of the Establishment, that forsooth the native clergy without hesitation embraced the tenets of Henry VIII. and Elizabeth, and that the Catholic Church was only upheld in our island “by begging friars and foreign priests”. We pray the reader whenever he hears such a statement made, to call to mind the See of Derry. Was Roderick, “the arrant traitor”, in the days of King Henry, a *foreign priest* and a stranger to our island? Was Raymond O'Gallagher a foreigner during Elizabeth's reign? Oh! ask the faithful of Innishowen, amongst whom he first exercised his sacred ministry—ask the camps of Maguire, O'Donnell, and O'Neill! Ask, too, the very enemies of our holy faith, the first founders of the Protestant Establishment: their deeds will tell you that he was the true pastor of the fold, and hence they set a price upon his head, and at length conferred on him the martyr's crown.

There was, however, one foreign prelate who received an appointment in Derry at this period, and he was precisely *the first and only* Protestant nominee to this see during Elizabeth's reign. “To the two northern sees of

Raphoe and Derry”, writes Dr. Mant, “Elizabeth made no collation, unless in the year 1595, when her reign was drawing towards its close”—(*Hist.*, i. 284). George Montgomery, a Scotchman, was the individual thus chosen to be the first representative of the *Establishment* in our northern sees. His patent for the sees of Clogher, Derry, and Raphoe, was dated the 13th of June, 1595, where already for many years a canonically appointed bishop ruled the fold of Christ. The good sense, however, of the Knoxian reformer judged it more prudent not to risk himself and family amidst the O'Kanes whilst arms were in the hands of the Irish chieftains: he hence consigned to oblivion his royal patent, and allowed the Irish pastors to feed in peace their spiritual fold. Even when, in 1605, he sought for a new appointment to these sees at the hands of King James, as we learn from Mant, Ware, and other Protestant authorities, he took care to make no allusion to the writ which he had formerly received in the thirty-seventh year of Elizabeth.

[pg 363]

Dr. Colenso And The Old Testament. No. II.

The Colenso controversy has entered on a new phase. It appears we must no longer speak of Dr. Colenso as the Protestant Bishop of Natal. He enjoyed this title indeed for a time, in virtue of letters patent issued by the supreme head of the Established Church. But the judicial committee of her Majesty's privy council has sat in judgment on her Majesty's letters patent, and has

just pronounced that they are invalid and without effect in law; that her Majesty had assumed a prerogative which did not belong to her, and had been guilty in fact, though inadvertently, of an illegal aggression upon the rights of her colonists.

The history of this remarkable decision may be told in a few words. Dr Colenso was appointed to the See of Natal in the year 1853. In the same year, Dr. Gray, as Bishop of Cape Town, was invested by royal letters patent with metropolitan jurisdiction over Dr. Colenso and the diocese of Natal. Ten years passed away, and each in his own sphere exercised the authority which he was supposed to have received from the crown. At length Dr. Colenso's book appears, and a charge of heresy is preferred against him. The charge is entertained by the supposed metropolitan, who sets up a court, proceeds to try the cause, and finally, in December, 1863, delivers his sentence. By this sentence Dr. Colenso is deprived of his see, and forbidden to exercise his sacred functions within the ecclesiastical province of Cape Town. The deposed bishop refuses to acknowledge the jurisdiction of the court, and appeals to the privy council. The controversy was thus reduced to a simple question of law,—was Dr. Gray legally possessed of those metropolitan rights to which he laid claim? To this question the judicial committee of the privy council has given a clear and decisive answer. When a colony is once endowed with legislative institutions of its own, the crown no longer possesses any authority to create sees or to confer ecclesiastical jurisdiction. Now in the two colonies of Cape Town and Natal an independent legislature had been established in the year 1850; and therefore the letters patent of 1853 were null and void in law. Hence it follows that, according to English law, Dr. Gray was never in point of fact the Metropolitan of Cape Town; but neither was Dr. Colenso the Bishop of Natal.

Thus has Dr. Colenso pulled down the whole edifice of the English colonial episcopate. Like Sampson of old, he has been, indeed, avenged upon his enemies, but he has been himself crushed beneath the ruins he has made. Yet, though his jurisdiction [pg 364] as a bishop may be taken away, his moral power and his influence are increased. He now appears not only as an eminent leader of the free-thinking and infidel school of theology, but as a martyr who has suffered in the cause; and this new character gives him an

additional claim to the sympathy and veneration of his followers. When the youthful plant is checked in its upward growth by the skilful knife of the gardener, it puts forth new branches on every side, and flourishes with increased luxuriance. And so, according to every human probability, the check which Dr. Colenso has received will but promote the rapid expansion of his views, and their dissemination throughout the Protestant Church. It is therefore all the more important for those who defend the cause of truth to refute his charges against the Bible, and to lay bare the sophistry of his arguments. Let us take the following example:—

“‘*And Jehovah spake unto Moses, saying, ... Gather thou the congregation together unto the door of the tabernacle of the congregation. And Moses did as Jehovah commanded him. And the assembly was gathered unto the door of the tabernacle of the congregation*’—(Lev., viii. 1-4).

“First, it appears to be certain that by the expressions used so often, here and elsewhere, ‘the assembly’, ‘the whole assembly’, ‘all the congregation’, is meant the whole body of the people—at all events, the *adult males in the prime of life* among them—and not merely the *elders* or *heads of the people*, as some have supposed, in order to escape from such difficulties as that which we are now about to consider. At any rate, I cannot, with due regard to the truth, allow myself to believe, or attempt to persuade others to believe, that such expressions as the above can possibly be meant to be understood of the elders only....

“This vast body of people, then, received on this occasion, and on other similar occasions, as we are told, an express command from Jehovah himself, to assemble ‘at the door of the tabernacle of the congregation’. We need not press the word ‘all’ so as to include every individual man of this number. Still the expression ‘all the congregation’, the ‘whole assembly’, must be surely understood to imply the *main body* of those who were able to attend, especially when summoned thus solemnly by the direct voice of Jehovah himself. The *mass* of these 603,550 men *ought*, we must believe, to have obeyed such a command, and hastened to present themselves at the ‘door of the tabernacle of the congregation’....

“Now the whole width of the *tabernacle* was 10 cubits, or 18 feet, ... and its length was 30 cubits, or 54 feet, as may be gathered from *Exodus*, xxvi. Allowing two feet in width for each full-grown man, nine men could just have [pg 365] stood in front of it. Supposing, then, that ‘all the congregation’ of adult males in the prime of life had given due heed to the divine summons, and had hastened to take their stand, side by side, as closely as possible, in front, not merely of the *door*, but of the whole *end* of the tabernacle in which the door was, they would have reached, allowing 18 inches between each rank of nine men, for a distance of more than 100,000 feet, in fact nearly *twenty miles*”—(Part i. pp. 31,33).

Dr. Colenso revels in figures. When he sets about a problem he delights to look at it from every point of view, and to work out his sum in a variety of ways. By a very simple process of multiplication and addition he has here proved that the Scripture narrative is quite ridiculous and absurd. Yet he is not content. He must lead his readers to the same conclusion by another process:—

“As the text says distinctly ‘at the door of the tabernacle’, they must have come *within the court*. And this, indeed, was necessary for the purpose for which they were summoned on this occasion, namely, to witness the ceremony of the consecration of Aaron and his sons to the priestly office. This was to be performed inside the tabernacle itself, and could only, therefore, be seen by those standing at the door....

“But how many would the *whole court* have contained? Its area (60 yards by 30 yards) was 1,800 square yards, and the area of the tabernacle itself (18 yards by 6 yards) was 108 square yards. Hence the area of the court outside the tabernacle was 1,692 square yards. But the whole congregation would have made a body of people nearly twenty miles—or, more accurately, 33,530 yards—long, and 18 feet or 6 yards wide; that is to say, packed closely together, they would have covered an area of 201,180 square yards. In fact the court, when thronged, could only have held five thousand people; whereas the able-bodied men alone exceeded six hundred thousand.... It is inconceivable how, under such circumstances, ‘all the assembly’, the ‘whole

congregation', could have been summoned to attend 'at the door of the tabernacle', by the express command of Almighty God"—(pp. 33, 34).

Before we proceed to examine this singular objection, put forward in so plausible and popular a form, it may be useful to describe, in a few words, the general appearance of the tabernacle, and of the court which surrounded it. Our readers will thus be placed in a position to form a clear and distinct idea of the difficulty which Dr. Colenso has raised. And we are satisfied that the more thoroughly it is understood, the more complete and satisfactory will the explanation be found.

The court of the tabernacle was an oblong rectangle, one hundred [pg 366] cubits² in length, from east to west, and fifty cubits in breadth, from north to south. This space was enclosed by hangings of fine twisted linen, supported by sixty pillars, to which they were attached by hooks and fillets of silver. The entrance to the court was at the eastern end; it was twenty cubits in width; and across the opening was suspended a curtain, embroidered with fancy needlework, and rich with gorgeous colours.

Within the court, and towards the western end, was erected the tabernacle. It was simply a large tent, constructed with elaborate care, and formed of costly materials. Like the court in which it was placed, it was an oblong rectangle, being thirty cubits in length and ten cubits in breadth. The walls were of setim or acacia wood; the roof of fine linen, covered with curtains of goats' hair and skins. The eastern end was open, but was furnished with a rich hanging to serve as a door. Internally the tabernacle was divided by a veil into two apartments;—the *Holy Place*, twenty cubits in length, which contained the golden candlestick, the table of show-bread, and the altar of incense; and the *Holy of Holies*, ten cubits in length, in which was placed the ark of the covenant. The *Holy Place* was appropriated to the priests, who entered it twice a day, morning and evening. The *Holy of Holies* was forbidden to all but the high priest alone, and even he could enter only once a year, on the great day of atonement.

The argument of Dr. Colenso is now easily understood. According to the Scripture narrative, the whole multitude of the Israelites, or at least six hundred thousand men, were summoned to attend, and actually did attend,

“at the door of the tabernacle”. It follows that they must have stood in a line eighteen feet broad and twenty miles long, which is perfectly absurd. Besides, they could not have witnessed the ceremony to which they were summoned unless they came within the court. But this is an absolute impossibility, as the court would only hold five thousand men, even if they were closely packed together.

Here is, indeed, a very serious charge against the credibility of the Pentateuch. But it seems to us a charge which, from its very nature, must refute itself. Dr. Colenso will not deny that the Book of *Leviticus* was written while the tabernacle was still in existence; and that its author, whoever he may have been, had the tabernacle and its appurtenances constantly before his eyes. If he was not a truthful historian, but an impostor, he was certainly [pg 367] a most skilful impostor. He must have known well, all his readers must have known well—quite as well as Dr. Colenso—that the tabernacle could not hold more than five thousand people. Now it is perfectly incredible that any man of common sense, not to say a most clever and successful impostor, under these circumstances, would have ventured boldly to state that six hundred thousand persons were gathered within its precincts.

Let us, however, examine the argument in detail. The foundation on which it rests is clearly enough stated by Dr. Colenso. “It appears to be certain that by the expressions, used so often here and elsewhere, ‘the assembly’, ‘the whole assembly’, ‘all the congregation’, is meant the whole body of the people—at all events, the *adult males in the prime of life* among them—and not merely the *elders* or *heads of the people*”, etc. We deny this assertion. The Hebrew word *עדה* (heda), which is here translated the *assembly*, the *congregation*, comes from the root *עדה* (yahad), *to appoint*, and means literally an *assembly meeting by appointment*. It is quite true, as Dr. Colenso contends, that the word is sometimes employed to designate the entire body of the people. But it is also true, though he ignores the fact, that it is sometimes applied to a *select few*, invested with a certain authority and jurisdiction. We shall be content with submitting to our readers one remarkable example.

In the thirty-fifth chapter of *Numbers* we read of the cities of refuge. They were to be six in number—three upon each side of the Jordan; and were intended to afford shelter to those who had unintentionally shed innocent blood. “And they shall be for you cities for refuge from the avenger; that the manslayer die not until he stand before the *assembly* (עדה) for judgment” (*Numbers*, xxxv. 12).³ It is then laid down that if the murder have been deliberate, it shall be punished with death (16-21). But if the fatal blow have been struck *without enmity* or *premeditation*, or *by chance* (22, 23), “then the *assembly* (עדה) shall judge between the slayer and the revenger of blood.... And the *assembly* (עדה) shall deliver the slayer out of the hand of the revenger of blood, and the *assembly* (עדה) shall restore him to the city of his refuge” (24, 25). It is quite impossible to suppose that the judicial tribunal here spoken of could be the entire body of the people, or even the 600,000 [pg 368] male adults. The question to be tried was one of the highest moment, involving the life or death of a fellow-citizen. It was also one of extreme delicacy, having to deal, not with the mere external act, but with the motives and feelings of the heart. To the *assembly* (עדה) it belonged to pronounce, not merely whether one man had killed another, but whether in his heart he had *committed the crime* of murder. For this purpose witnesses should be examined, evidence should be carefully sifted, and, perhaps, even the domestic secrets of the accused and of his victim should be laid bare. Was this a task that could be entrusted to a mixed multitude of 600,000 men?

Accordingly we find that Rosenmuller, in his commentary on this passage (*Num.*, xxxv. 24), explains the word, *the assembly of judges*—“*cætus judicum urbis in cujus agro contigerit homicidium*”. If we apply this interpretation to the passage in *Leviticus*, every shadow of improbability and inconsistency will at once disappear from the narrative. Now, we ask Dr. Colenso, when a word in Scriptural usage has two different meanings, which must we choose when we come to examine a text in which that word is found? Are we to select the meaning which is in every way suitable to the context and circumstances; or must we rather adopt an interpretation which will make the sense absurd and impossible? Dr. Colenso has preferred the latter course. It appears to us that the former is alone consistent with the instinct of common sense and the principles of genuine criticism.

We think our readers will admit that we have fairly established our point, and proved that Dr. Colenso's argument is utterly destitute of foundation. For the ordinary purposes of controversy it would be unnecessary to go further. But we frankly confess we aim at something more. We are not content with answering the argument of Dr. Colenso; we wish to shake his authority as a trustworthy critic. All that he has written against the Pentateuch is made up of these two elements—first, the *meaning* which he attaches to the narrative, and, secondly, the *process of reasoning* by which he labours to show that this meaning is inconsistent or impossible. Now it is plain, from the argument we are considering, that Dr. Colenso is liable to the grossest errors, not only when he undertakes to interpret the sacred text, but also when he proceeds to reason on his own interpretation. If this assertion be established, his authority can have but little weight.

Let us suppose then, for a moment, that by the *assembly* is meant, in a general way, the entire people of Israel; does it follow, as Dr. Colenso maintains, that, according to the narrative, 600,000 men must have “hastened to present themselves at the [pg 369] ‘door of the tabernacle?’ ” We believe it does not. Nay, more, we believe that the absurdity of Dr. Colenso's opinion is clearly proved by some of the texts which he has himself adduced. For instance:—“Bring forth the blasphemer out of the camp ... and let *all the assembly* (עדה) stone him” (*Lev.*, xxiv. 14). And again, in the case of the Sabbath-breaker:—“The man shall be surely put to death; *all the assembly* (עדה) shall stone him with stones without the camp. And *all the assembly* (עדה) brought him without the camp, and stoned him with stones, and he died” (*Num.*, xv. 35, 36). No one will maintain that the writer here means to say that 600,000 men were engaged in carrying the condemned man, or that 600,000 men threw stones at him. If Dr. Colenso had paused for a moment to reflect on these texts as he copied them from the Bible, we are convinced he would have suppressed his foolish argument. Exactly as it is said that *all the assembly* was gathered into the door of the tabernacle, so too is it said that *all the assembly* stoned the blasphemer and the Sabbath-breaker. In the latter case, it is clear that the number of those who were actually engaged in carrying out the sentence of God was comparatively small, but the act is fairly ascribed to the whole community, because *all* were *summoned* to take part in it, and those who complied with the summons *represented* those who did not. Surely there is

no reason why we may not apply the same interpretation to the former passage.

Nor is this mode of speaking peculiar to Sacred Scripture. Every year the members of the House of Commons are summoned to appear at the bar of the House of Lords; every year we are told that they obey that summons. Who is there that questions the truth of this statement? It represents a fact with which we are all familiar. Yet Dr. Colenso with his rule and measure will demonstrate that the fact is impossible and the statement false, because the place in which the Commons are said to assemble cannot possibly hold one-tenth of their number.

So much for Dr. Colenso as an interpreter of the Bible. He is satisfied that if we accept the narrative we must believe that six hundred thousand men were gathered unto the door of the tabernacle. We have seen that he is mistaken; but let us now concede this fact, and let us see how he proceeds to reason upon it. Since the tabernacle was only eighteen feet wide, this immense multitude must have stood in a line eighteen feet in breadth and twenty miles in length. This is certainly a most extraordinary conclusion. No multitude ever yet stood in such a line; no multitude *could* stand in such a line unless they had been specially trained during many years for that purpose. There is no conceivable reason why the Jews on this occasion should have stood [pg 370] in such a line. And yet Dr. Colenso will have it that they *must* have stood in this way, if it be true that they were gathered unto the door of the tabernacle.

We are tempted to offer an illustration of the very peculiar manner in which Dr. Colenso here pursues his critical examination of the Bible. Many of our readers will remember the 15th of August, 1843. In the phraseology of Scripture it might be said that upon that day 100,000 Irishmen were *gathered to O'Connell* on the Hill of Tara.⁴ To the ordinary reader such a statement would present no insuperable difficulty. It would convey, indeed, a pretty correct idea of what we all know actually to have taken place. But when submitted to the Colenso process, this simple narrative will be found to undergo a very startling transformation. O'Connell did not occupy a space more than two feet broad. Therefore there was just room for one full-grown man to stand in front of him. The second must have stood behind the

first; the third behind the second; and so the whole multitude must have extended in a single unbroken line over many miles of country. A little boy at school could tell us that, when we say the multitude was gathered unto O'Connell, we do not mean that the multitude occupied a space which was only as broad as O'Connell. Yet Dr. Colenso maintains that this is the only meaning which the phrase admits. Such principles would make strange havoc with history.

Again, Dr. Colenso contends that all who were *gathered unto the door of the tabernacle* “must have come *within the court*”. “This, indeed”, he says, “was necessary for the purpose for which they were summoned on this occasion, namely, to witness the ceremony of the consecration of Aaron and his sons to the priestly office”. Now it is nowhere stated that this was, in point of fact, the purpose for which the people were gathered together. Certainly, if it were *impossible* they could witness the ceremony, as Dr. Colenso assures us, we are bound to infer that it was *not* for this purpose they were assembled. Nor is it difficult to find another, and quite a sufficient reason, for gathering the people together on this solemn occasion. It may have been the design of God that, by their *presence* in and around the court of the tabernacle, they should make a public profession of their faith, and formally acknowledge the priesthood of Aaron. Thus, in the illustration already introduced, it was impossible for 100,000 people to hear O'Connell speak; but their presence was itself a [pg 371] public declaration that they adhered to his principles and accepted him for their leader.

Was it, however, really impossible that those without the court should witness the leading features of the ceremony? Certainly not. We must bear in mind that the court was not enclosed by stone walls, but by hangings of fine linen. Nothing, therefore, could have been more simple than to loop up these curtains to the pillars by which they were supported, and thus to afford a full view of the tabernacle to those who stood without. Dr. Colenso will probably say that in the scripture narrative there is no mention of any such arrangement. Neither, we reply, is it said that those without the court were intended to witness the ceremony. But if we suppose that this was intended, we must also suppose that the means were adopted which would make it *possible*.

There is yet another error of Dr. Colenso which we cannot pass by in silence. It is true, the blunder to which we refer has little to do with his argument. But it has much to do with the question whether he is a competent authority on the sacred text, even when he speaks with special emphasis and with unhesitating confidence. “Supposing that ‘all the congregation’ of adult males ... had hastened to take their stand ... in front, not merely of the *door*, but of the whole *end* of the tabernacle in which the door was”, etc. It is clear that the writer of this passage was under the impression (which, indeed, he conveys not only by his words, but still more by his italics—for they *are* his) that *the whole end* of the tabernacle was wider than the *door*. Now if he had taken the pains to read even an English translation of the sacred book which he so rashly presumed to condemn, he never could have fallen into so great a mistake. He would have seen that the *whole eastern end* of the tabernacle was left open, and that the open space was covered only by a curtain which extended across from side to side. Consequently, if mention were really made of a door, it must have been this curtain itself that was called by that name.

But if Dr. Colenso had gone a little further, and had consulted any Hebrew lexicon, he would have discovered that the sacred writer does not speak of a *door*, but rather of a *doorway*. The tabernacle had in fact no *door* properly so called. The word פֶּתַח (*pethach*), which is used by the sacred writers when speaking of the tabernacle, signifies, as Gesenius explains it, *an opening, an entrance*. It means, therefore, the whole end of the tabernacle, which was left *open* to the court when the curtain was drawn. In Hebrew the idea of a *door* is expressed by דֶּלֶת (*deleth*). When treating of this word, Gesenius, having first explained its meaning, pointedly remarks: “It differs from פֶּתַח, which denotes the doorway which the door closes”. It is quite [pg 372] certain, therefore, that the *door* and the *whole end of the tabernacle*, which Dr. Colenso so emphatically contrasts, were in reality one and the same thing.

It is time, however, that we pass to another of Dr. Colenso's arguments:—

“ ‘And the skin of the bullock, and all his flesh, with his head, and with his legs, and his inwards, and his dung, even the whole bullock, shall he (the Priest) carry forth without the camp, unto a clean place, where the ashes are

poured out, and burn him on the wood with fire. Where the ashes are poured out there shall he be burned’—(Lev., iv. 11, 12).

“We have seen that the whole population of Israel at the exodus may be reckoned at two millions. Now we cannot well allow for a *living* man, with room for his cooking, sleeping, and other necessities and conveniences of life, less than three times the space required for a *dead* one in his grave.... Let us allow, however, for each person on the average three times 6 feet by 2 feet, the size of a coffin for a full-grown man,—that is, let us allow for each person 36 square feet or 4 square yards. Then it follows that ... the camp must have covered, the people being crowded as thickly as possible, an area of 8,000,000 square yards, or more than 1652 acres of ground.

“Upon this very moderate estimate, then (which in truth is far within the mark), we must imagine a vast encampment of this extent, swarming with people, more than *a mile and a half across* in each direction, with the tabernacle in the centre.... Thus the refuse of these sacrifices would have had to be carried by the priest himself (Aaron, Eleazar, or Ithamar,—there were no others) a distance of three-quarters of a mile....

“But how huge does this difficulty become, if, instead of taking the excessively cramped area of 1652 acres, less than *three square miles*, for such a camp as this, we take the more reasonable allowance of Scott, who says, ‘this encampment is computed to have formed a moveable city of *twelve miles square*, that is, about the size of London itself,’—as it well might be, considering that the population was as large as that of London, and that in the Hebrew tents there were no first, second, third, and fourth stories, no crowded garrets and underground cellars. In that case the offal of these sacrifices would have had to be carried by Aaron himself, or one of his sons, a distance of six miles.... In fact, we have to imagine the priest having himself to carry, on his back, on foot, from St. Paul’s to the outskirts of the metropolis, the ‘skin, and flesh, and head, and legs, and inwards, and dung, even the whole bullock’.... This supposition involves, of course, an absurdity. But it is our duty to look plain facts in the face”—(Part i. pp. 38-40).

We agree with Dr. Colenso that this is a “huge difficulty”, and that the duties of the priest, as described by him, involve a manifest absurdity. But we contend that the duties of the priest, as described by him, are not to be found in the Pentateuch; that *all the circumstances* which constitute the difficulty and the absurdity are simply *additions of his own*. This is indeed a serious charge against a writer who represents himself to the public as an earnest and conscientious searcher after truth. But we hope to satisfy our readers that it is a plain and obvious fact; and it is our duty, as Dr. Colenso truly tells us, “to look plain facts in the face”.

It is evident that the whole weight of the objection consists in this: that, according to the sacred narrative, the priest is commanded, first, to carry the bullock *himself*; secondly, to carry it *on his back*; thirdly, in doing so, to *go on foot*. Now there is not the faintest insinuation in any text Dr. Colenso has produced, nor, we may add, in any text the Pentateuch contains, that the priest should *go on foot*, or that he should carry the bullock *on his back*. These two ideas are to be found only in the fanciful and rather irreverent gloss of Dr. Colenso.

Neither is it commanded in the sacred text that the priest should *himself* carry the bullock out of the camp. Even in the English translation there is nothing to imply that he might not, for this duty, employ the service of his attendant Levites. It is said, indeed, “he shall carry forth the bullock without the camp”. But by the common use of language we may impute to a person, as his own, the act which he does by the agency of another. Thus a minister of state is said to write a letter, when the letter is written at his direction by his secretary. In the Fourth Book of *Kings* it is recorded of Nabuchodonosor that “*he carried away all Jerusalem, and all the princes, and all the valiant men of the army, to the number of ten thousand, into captivity:... and the judges of the land he carried into captivity from Jerusalem into Babylon. And all the strong men, seven thousand, and the artificers and the smiths a thousand*”, etc.—(IV. *Kings*, xxiv. 14-16). No one dreams of any difficulty in a sentence like this. Yet, if we admit the Colenso system of interpretation, the difficulty is insuperable, because the *meaning of the sentence* is, that Nabuchodonosor *himself* carried that immense multitude *on his back* from Jerusalem to Babylon.

If we now turn to the Hebrew text we shall find that it is still less favourable to Dr. Colenso and his “huge difficulty”. The word וְהוֹצִיָא (vehotzi), which is there used, literally means *and he shall cause [it] to go forth*, that is to say, *he shall have it removed*. This will be at once admitted by every biblical scholar, and can be made intelligible without much difficulty to the [pg 374] general reader. In the Hebrew language there are several forms of the same verb, sometimes called conjugations, each of which has a meaning peculiar to itself. The primitive form is *kal*; and the *hiphil* form “denotes the *causing* or *permitting* of the action, signified by the primitive *kal*”.⁵ For example: קָדַשׁ (kadash) in *kal* signifies *to be holy*; in *hiphil*, *to cause to be holy*, *to sanctify*; נָטָה (natah) in *kal* means *to bow*; in *hiphil*, *to cause to bow*, *to bend*. Now, in the passage quoted by Dr. Colenso the word וְהוֹצִיָא is the *hiphil* form of יָצָא (yatza), *to go forth*; it therefore means literally *to cause to go forth*.⁶ We need scarcely remark that the priest would comply with this injunction whether he himself in person removed the bullock, or whether he employed the Levites to do it; whether he carried it on his back, according to the ridiculous paraphrase of Dr. Colenso, or removed it in wagons provided for the purpose.

And now that our paper approaches to a close, it may be asked what is the result of our labours, and what has been gained to the cause of truth by all the minute and tedious details through which we have conducted our readers? It seems to us that we have directly answered two of Dr. Colenso's arguments, and that we have moreover established indirectly a strong presumption against all the rest. Let us put a case to our readers. A jeweller exhibits for sale a string of pearls. He demands a very high price, but he pledges his word of honour that the pearls are of the rarest quality and of the highest excellence. A casual passer-by is attracted by the glittering gems. He enters the shop; he listens with eager credulity to the earnest protestations of the merchant; but he hesitates when the price is named. At this critical moment a friend arrives, who is happily somewhat versed in jewellery. He selects one or two pearls from the string, and after a brief inspection clearly shows, not merely that the price is far beyond their value, but that they are not pearls at all. What would be thought of the merchant who had offered them for sale? Who would frequent his shop? Who would believe [pg 375] the other pearls to be genuine on the strength of his

protestations? It may be indeed that he is not a swindler; but if he is an honest man, he is certainly a very indifferent judge of his business.

Now what this jeweller is in a matter of commerce, such, as it seems to us, has Dr. Colenso been proved to be in a matter of infinitely greater moment. He comes before the world with the prestige of a great name and of a high position. He earnestly announces that he has made a great discovery, and that he is forced by his conscience to speak out his mind. He offers to the public an attractive array of brilliant and plausible arguments; and in return he asks us to surrender the inestimable treasure of Christian faith. At first we are bewildered and perplexed by the novelty and variety of his arguments; but after a little we summon up courage; we select two or three from the number, and these we submit to a minute and careful analysis. We find that they are miserably defective and utterly inconclusive. Facts are misrepresented, the meaning of language is perverted, the principles of sound reasoning are disregarded. May we not then fairly infer that Dr. Colenso's earnest protestations of sincerity and good intention afford a very insufficient guarantee for the accuracy of his statements and the stability of his arguments? We do not say that he is dishonest; but we do say that he has proved himself a very incompetent authority.

Blessed Thaddeus M'Carthy.

[In an article of the *Record* for April (page 312), we briefly referred to a Bishop of Cloyne and Cork who is venerated as blessed, in Ivrea, a town of Piedmont. In conformity with the few fragments preserved in the archives of Ivrea and elsewhere regarding him, we adopted the opinion that his name, according to modern orthography, should be rendered Thaddeus Maher. Since the publication of the article just mentioned, a paper containing much valuable matter has been communicated to us through the great kindness of the Very Rev. Dr. M'Carthy, the learned Professor of

Scripture in Maynooth College, who had prepared it long before the article in the *Record* was published, and before he could have had any knowledge of our views on this subject. We are anxious to publish every document that we can find on this interesting question, in the hope that by discussing it, light may be thrown on the history of a holy Irish bishop, who is honoured beyond the Alps, but so little known at home, that there is great difficulty in determining his real name. In one of our next numbers we shall return to this subject.]

[pg 376]

On June 23rd, 1847, the Most Rev. Dr. Murray, Archbishop of Dublin, received at Maynooth a letter covering a bill of exchange for £40 (1,000 francs), sent for the relief of the famine-stricken poor of Ireland, by order of the good Bishop of Ivrea. The town of Ivrea (anciently *Eporedia*) is the capital of the Piedmontese province of the same name, which extends from the Po to the Alps. The province contains a population of over one hundred thousand, of whom about eight thousand reside in the town, where is also the bishop's see.

The letter to Dr. Murray enclosed a separate paper, of which the following is a copy:—

“De Beato Thaddeo Episcopo Hiberniae.

“Anno Domini millesimo quadringentesimo nonagesimo secundo, die vigesima quarta Octobris, Eporediae (antiquae urbis Transalpinae in Pedemontio) postremum obiit diem in hospitio peregrinorum sub titulo Sancti Antonii, quidam viator incognitus; atque eodem instante lux mira prope lectum in quo jacebat effulsit, et Episcopo Eporediensi apparuit homo venerandus, Pontificalibus indumentis vestitus. THADDEUM MACHAR Hiberniae Episcopum illum esse innotuit ex chartis quas deferebat, et in Cathedrali ejus corpus solemnem pompam depositum est sub altari, et in tumulo Sancti Eusebii Episcopi Eporediensis, atque post paucos dies coepit multa miracula facere.

“Acta et documenta ex quibus ejus patria et character episcopalis tunc innotuerunt, necnon ad patratorum miraculorum seu prodigiorum memoriam

exarata, interierunt occasione incendii quo seculo xvii. Archivium Episcopale vastatum est. In quadam charta pergamena characteribus Gothicis scripta, quae in Archivio Ecclesiae Cathedralis servatur haec leguntur:

“Marmoreis tumulis hoc templo Virginis almae
Corpora Sanctorum plura sepulta jacent
Martinus hic

.

Inde Thaddeus adest, quem misit Hibernia praesul
Sospite quo venit saepe petita salus,
Regia progenies alto de sanguine Machar,
Quem nostri in Genua nunc Latique vocant.
Ingemuit moriens, quem Hiberno sidere cretum
Non Cariense tenet, non Clovinense solum.
Sic visum superis; urbs Eporedia corpus
Templo majore marmoreo claudat opus.
Hic jacet Eusebii testudinis ipse sacello,
Pauperiem Christi divitis inde tulit.
Hunc clarum reddunt miracula sancta: beatus
Exstat: et in toto dicitur orbe pius.
Huc quicunque venis, divum venerare Thaddeum

[pg 377]

Votaque fac precibus: dicque viator, Ave.
Mille quadringentos annos tunc orbis agebat
Atque Nonagenos: postmodum junge duos.

“Verbis illis *solum Cariense* vel *Cloviense* et *Clovinense* designari a poeta civitates Hiberniae in quibus Thaddeus aut natus aut Episcopus fuerit, putandum est, forsane Clareh, Carrick.

“Quamobrem exquiratur utrum in Hibernia habeatur notitia hujus Episcopi THADDEI MACHAR—loci ubi natus fuerit,—ejus familiae, quae regia seu princeps supponitur in poesi,—civitatis seu ecclesiae in qua fuerit Episcopus. Desiderantur quoque notitiae si quae reperiri poterunt et documenta quibus illius vita et gesta illustrari possint; insuper utrum labente saeculo xv. aliqua persecutio in Hibernia adversus Episcopos facta sit, quemadmodum argumentari licet ex quibusdam Epistolis Innocentii VIII. circa immunitatem ecclesiasticam”.—(*End of paper*).

As our space precludes a literal translation of this paper, a summary may be acceptable to the reader.

On the 24th of October, 1492, died at Ivrea, in St. Antony's Hospice for Pilgrims, Blessed Thaddeus, an Irish bishop, whose body was deposited under the high altar of the cathedral, in a shrine over the relics of the holy patron, St. Eusebius. At the time of death a brilliant light was seen round his bed, and at the same moment to the Bishop of Ivrea there appeared a man of venerable mien, clothed in pontifical robes. Several other miracles were also wrought through his intercession. The papers found with him showed he was an Irish bishop, and these, as well as other documents proving his great sanctity, religiously kept in the episcopal archives, were destroyed by fire in the seventeenth century. In an old parchment, written in Gothic letters, still preserved in the archives of the cathedral church, are these lines:

'Neath marble tombs, in this the virgin's shrine
The bones of many a saint in peace recline;
Here martyred
Thaddeus there. From Erin's shore he came,
A bishop, of M'Carthy's royal name.
At whose behest were wondrous cures oft made.
Still Latium, Genoa, invoke his aid.
Dying, he mourned that not on Irish soil,
Where sped his youth, should close his earthly toil:
Nor Cloyne, nor Kerry, but Ivrea owns
(For God so willed) the saintly bishop's bones.
'T is meet that they in marble shrine encased
Should be within the great cathedral placed.
Like Christ, whose tomb was for another made,
He in Eusebius' cenotaph is laid.

[pg 378]

Soon sacred prodigies his power attest,
And all the Earth proclaims him pious, blest.
O ye who hither come, our saint assail
With prayers and votive gifts; nor, traveller, fail
To greet with reverence the holy dead.

Since Christ was born a thousand years had fled,
Four hundred then and ninety-two beside
Had passed away, when St. Thaddeus died.

When Dr. Murray received the Bishop of Ivrea's letter, he placed it in the hands of the late venerated President of Maynooth College, from whose MSS. it is now copied, together with the very literal translation of the verses made by one of the junior students at the time. Dr. Renehan undertook to collect all the notices of Blessed Thaddeus in our Irish annals, and to give the best answers he could to the bishop's questions. He even visited Ivrea in the summer of 1850, in the hope of finding traditional records of the life of Blessed Thaddeus, but to no purpose. He found the task more difficult than might be expected. All the knowledge regarding the saint's family, see, etc., that can be gathered from Irish or British sources is found in these few lines from Ware on the Bishops of Cloyne:

“THADY M'CARTHY (*succ.* 1490).—Upon the resignation of William, Thady M'Carthy, by some called Mechar, succeeded the same year by a provision from Pope Innocent VIII., as may be seen from the *Collectanea* of Francis Harold”—Ware's *Bishops* (Harris), p. 563.

The Blessed Thaddeus's name is unhonoured then, in his own country; his biography, if ever written, is at least not recorded by the Irish historians. Even the scanty information which the industrious Ware supplies, was gleaned not from our annals, but from Harold's *Collectanea*, probably notes and extracts taken from documents in the continental libraries. Dr. Renehan had, therefore, little to add on our saint's life. He was, however, fully satisfied that Blessed Thaddeus of Ivrea was no other than the Bishop of Cork and Cloyne, mentioned by Ware. His arguments may be seen in a rough outline of his answer to the Bishop of Ivrea's letter, among the O'Renehan MSS. in Maynooth, almost the only authority we had time to consult for this notice. Sometimes the very words of the letter are given in inverted commas:—

I. The Pilgrim of Ivrea was an Irish bishop who died in the year 1492. “The most diligent search through our Irish annals will not discover another bishop to whom even so much of the poet's description will apply but

Thaddeus M'Carthy, Bishop of Cloyne. About that date there were indeed in Ireland five bishops named Thaddeus: 1. Thady, Bishop of Kilmore, since [pg 379] before 1460; but his successor Furseus died in 1464, and Thomas, the third from him, died before 1492. 2. Thady M'Cragh, of Killaloe, succeeded in 1430, full sixty years before our saint's death at Ivrea. His third successor died in 1460. 3. Thady, Bishop of Down, was consecrated in Rome, 1469, died in 1486, and his successor, R. Wolsey, was named before 1492. 4. Thady of Ross died soon after his appointment in 1488, succeeded by Odo in 1489. 5. Thady of Dromore, appointed only in 1511, and the see was held by George Brown in 1492. The date (1492) is alone enough to prove that B. Thaddeus of Ivrea was not any of the preceding bishops, and there was no other of the name for full sixty years after or before, but the Bishop of Cork and Cloyne, the date of whose death fits exactly all the requirements of the case. Ware quotes from Harold that he was appointed by Innocent VIII. (*sed.* 1484-1492,) that he succeeded W. Roch, resigned 1490, and further, that Gerald, who succeeded, resigned in 1499, after obtaining a pardon from Henry VII. in 1496"—(*Lib. Mun.*, i. p. 102)

II. Another line of the old fragment seems to name the see of the B. Thaddeus, whom the poet describes as lamenting his death abroad, far from the "solum Chariense", or "Clovinense", which we interpret far "from Kerry", the burial place of his family, and "from Cloyne", his episcopal see. "Cloyne" is variously Latinized, even by Irish writers, "Cloynensis", "Clonensis", "Cluanensis"—and often "Clovens" or "Clovinen", in Rymer's *Foedera*.⁷ What more natural than that a poet would describe the pilgrim as longing to be buried either in his cathedral church of *Cloyne* or with his fathers in *Kerry*?

III. The passage which seems to us most decisive, is that which points to the royal extraction and name of this holy bishop: "*Regia progenies, alto de sanguine Machar*". Observe how in the notice from *Harold* Bishop M'Carthy was called also "Mechar". Clearly both were one and the same name. Thus [Gaelic: Mac Careaw], Anglicised M'Carthy, is pronounced Maccaura, with the last syllable short, as in Ard-Magha (Armagh), and numberless like words. Hence Wadding,⁸ in speaking of the foundation of Muckross Abbey, Killarney, by Domnal M'Carthy, Prince of Desmond, quotes to this effect a Bull of Paul II., in 1468, in which Domnall's name is

spelled “*Machar*”, a form identical with that in the contemporary fragment. In truth, there is no Irish family name like “*Machar*” at all but “*Meagher*”, which is invariably spelled with “*O*”, [pg 380] especially in the Latinized form; and the “*O'Meaghers*” had no claim to *royal* blood.

IV. The Blessed Thaddeus was “*regia progenies*”. Now there was no *royal* family name in Ireland like that in the inscription except the truly *royal* name, made more royal still by the saintly Bishop of Cloyne. Without insisting with Keating that the ancestry of the M'Carthy family could be traced through twenty-eight monarchs who governed the island before the Christian era, we may assert with the Abbe MacGeoghan, in a note (tom. iii. p. 680), strangely omitted by his translator, “that if regard be had to primogeniture and seniority of descent, the M'Carthy family is the *first* in Ireland”.

Long before the founders of the oldest royal families in Europe—before Rodolph acquired the empire of Germany, or a Bourbon ascended the throne of France—the saintly Cormac M'Carthy, the disciple, the friend, and patron of St. Malachy, ruled over Munster, and the title of *king* was at least continued in name in his posterity down to the reign of Elizabeth. “Few pedigrees, if any”, says Sir B. Burke, “in the British empire can be traced to a more remote or exalted source than that of the Celtic house of M'Carthy.... They command a prominent, perhaps the *most prominent* place in European genealogy”. Plain then is it that in no other house could the “*regia progenies*” be verified more fully than in the M'Carthy family.⁹

V. The date of death, the wished-for burial place, his native soil (Kerry), or his diocese (Cloyne)—the name and royal extraction, all point to the Bishop of Cloyne as the saint whose relics are still worshipped at Ivrea. If we add that “*Chiar*” is the usual Irish form of Kerry; that Domnall's (the founder of Irrelagh) father's name was THADDEUS, not improbably our Saint's uncle, the evidence seems to be overwhelming.

VI. We have said there is no account in Irish writers of even the Bishop of Cloyne, except the few lines in Ware. The continental annalists of the religious orders do, however, speak of one celebrated Thaddeus, without mentioning his surname or country. Elsius (quoting *De Herera* and *Crusen*, whose works are not within our reach) notices Thaddeus *de Hipporegio* sive

Iporegia, “as a man distinguished for learning, religious observance, preaching, holiness of life, and experience, a man of great zeal, and a sedulous promoter of the interests of his order”. He was prior, he adds, of several convents, seven times definitor, thirteen times visitator, four times president of synods, nine times vicar-general, and his government was ever [pg 381] distinguished for the greatest love of order and edifying example. See Els., *Encom.*, August., p. 645.

After quoting these words in substance from the Augustinian chronicler, Dr. Renehan adds: “After the most diligent inquiry I could make at Ivrea, wherever I could hope for any little information, particularly at the episcopal palace (where I was received with marked respect, as a priest from the country that sent out the B. Thaddeus), and of the Bishop's secretary, the vicar-general, and many others, whose kind attention I can never forget, I could find no vestige of any other Thaddeus, called after the city (*Eporedia*), but our own blessed Irish bishop; and I was assured, over and over again, that he was the only Thaddeus known in its annals, or who ever had any connection with the town, by birth, residence, death—or any way known to the present generation”. It is not then unreasonable to suppose that the Thaddeus so celebrated in the Augustinian Order was no other than our Bishop. True, Elsius gives 1502 for the date of the friar's demise; but Elsius is never to be trusted in dates, and the printer may easily take MCCCCXCII. (the true date), for MCCCCCII. Indeed, 1492 is not so different from 1502 that an error may not have crept in.

Dr. Renehan's theory, then, with regard to B. Thaddeus, fully detailed in the letter to the Bishop of Ivrea, was this:—

Thaddeus M'Carthy was born in Kerry, where the M'Carthy More branch of the family resided, and where, in the monastery of Irialac (now Muckross), or in Ennisfallen (see *Archdall*), the princes of the house were always buried. The young Thaddeus went abroad at an early age, and embraced the monastic life. His virtues and piety soon attracted the notice of his religious brethren, as manifest from their chronicles. They became in time known to the ruling Pontiff, Innocent VIII., who raised him to the episcopal dignity. The B. Thaddeus repaired to Rome in the first place, to receive consecration and jurisdiction from the successor of St. Peter, imitating in this the

example of our great patron saint. He stopped at Ivrea, probably on his way home, fell sick there, and died, God witnessing to His servant by signs and wonders. The silence of our annalists is thus accounted for to a great extent by the long residence of B. Thaddeus abroad. This theory is remarkably borne out by the independent notice in last *Record*. Having little to help us to arrive at any correct notion of the saintly bishop's life beyond the epitaph and the slender tradition at Ivrea, we entirely subscribe to this view. Other sources of information may be opened, now that we have ventured to bring, for the first time, the name of B. Thaddeus before the Irish Catholic people; and for this service, little as it [pg 382] is, and entirely unworthy of our saintly bishop, we still expect his blessing in full measure.

Liturgical Questions.

We have received from various quarters several questions connected with the ceremony of marriage. We propose in this number of the *Record* to answer some of them.

We shall treat in the first place of the Mass. The questions forwarded to us may be reduced to the two following:

1. When and on what days can the Missa pro sponso et sponsa be said, and on what days is it forbidden by the Rubrics?
2. In either Mass are any commemorations to be made, and when and how are they to be made?

In reply to these questions, we beg to bring under the notice of our readers the following decrees of the Sacred Congregation of Rites.

4266. In celebratione Nuptiarum quae fit extra diem Dominicum vel alium diem festum de praecepto seu in quo occurrat duplex primae vel secundae classis etiamsi fiat officium et Missa de Festo duplici per annum sive majori sive minori dicendam esse Missam pro sponso et sponsa in fine Missalis post alias Missas votivas specialiter assignatam: in diebus vero Dominicis aliisque diebus festis de praecepto ac duplicibus primae et secundae classis dicendam esse Missam de Festo cum commemoratione Missae pro sponso et sponsa. Atque ita decrevit et servari mandavit. Die 20 Decembris 1783. Factaque deinde per me Secretarium de praedictis Sanctissimo Domino Nostro Pio PP. VI. relatione Sanctitas sua praefatum Sac. Cong. generale Decretum confirmavit, et ubique executioni dandum esse praecepit. Die 7 Januarii 1784

4394. Verumtamen cum interea nonnulla excitata fuerint dubia circa rubricam in haccelebranda Missa servandam, et Parochorum sensus sit varius quippe quia aliqui eidem Missae Hymnum Angelicum adjiciendum censent cum vers. *Ite, Missa est* in fine, alii vero etiam Symbolum Nicenum legendum putant, ea freti ratione quod haec Missa ceu solemnis et pro re gravi haberi debeat: ideo ad amputandas controversias et dubitationes utque ab omnibus unus idemque conveniens ritus servetur: sacra Rituum Congregatio, me subscripto secretario referente, re mature discussa, declaravit atque decrevit quod firma remanente dispositione praefati Decreti quoad designationem dierum in quibus Missa votiva pro sponso et sponsa celebrari potest, eandem esse votivam privatam, proindeque semper legendam sine Hymno Angelico [pg 383] et symbolo Nicaeno cum tribus orationibus, prima videlicet ejusdem Missae votivae propria ut habetur in fine Missalis secunda et tertia diei currentis ut in Rubric. Tit. vii. num. 3, de Commemorationibus, Benedicamus Domino in fine, et ultimo Evangelio S. Johannis. Et ita decrevit die 28 Februarii 1818.

4437. Cum per Decretum Generale S. hujus Congregationis die 20 Decembris 1783 dies designentur, quibus Missa pro sponso et sponsa etiam diebus excludentibus duplicia per annum, ideoque etiam infra octavam Epiphaniae, in vigilia Pentecostes, et infra octavam privilegiatam sanctissimi Corporis Christi: alii vero putant his etiam diebus eandem Missam vetitam; idcirco idem Parochus petiit declarari.

5. An huiusmodi Missa dici possit diebus duplicia excludentibus ut supra notatis?

6. An Commemoratio Missae pro sponso et sponsa dicenda prout ex dicto decreto in Missis de duplici primae vel secundae classis dici debeat sub unica conclusione cum oratione Festi vel sub altera conclusione?

7. An talis Commemoratio pariter dici debeat vel sub altera conclusione prout solet de aliis commemorationibus occurrentibus in diebus Dominicis et Festis de praecepto?

8. Quo loco, quando aliae occurrunt commemorationes ut in proximo quaesito commemoratio Missae pro sponso et sponsa dicenda sit sub secunda conclusione, an scilicet ultimo loco?

Et S. Rituum Congregatio exquisita sententia alterius ex Apostolicarum Caeremoniarum Magistris scripto exarata, typisque evulgata ad relationem Eminentissimi et Reverendissimi D. Card. Cavalchini Ponentis, respondendum censuit ut infra, videlicet.

Ad 5. Negative quoad octavam Epiphaniae, vigiliam Pentecostes, et octavam privilegiatam Sanctissimi Corporis Christi, quatenus privilegium concessum sit ad instar octavae Epiphaniae.

Ad. 6. Negative ad primam partem, affirmative ad secundam.

Ad. 7. Ut in antecedenti.

Ad. 8. Faciendam primo loco post alias de praecepto.

Atque ita respondit die 20 Aprilis 1822.

From these decrees the following conclusions may clearly be established:

1. On all Sundays and holidays of obligation, and feasts of first and second class, the Mass of the day is to be said with the commemoration of the Mass pro sponso et sponsa. This appears clear from the decree 4266 quoted above.

2. This commemoration is to be made sub altera conclusione, and not sub unica conclusione cum oratione Festi.

3. If there are other commemorations to be made in the Mass of the day, they are to be said before the commemoration of the Mass pro sponso et sponsa. This appears from the answer given [pg 384] by the Sacred Congregation of Rites to the question 8 in the Decree No. 4437, and Gardellini, in a note on this same question, says: “Imo si occurrant plures commemorationes ut accidit potissimum dum celebranda est Missa de Dominica, illa Nuptiarum primum dumtaxat locum obtinere poterit post alias a rubrica praeceptas et sic reliquas praestare, siquae sint a superiore imperatae”.

4. The decree 4394 makes it clear that on all the ordinary doubles throughout the year, the Missa pro sponso et sponsa may be celebrated; and it declares, moreover, that it is a votive private Mass, and, as such, to be said sine Gloria et Credo, with the second and third prayers of the day occurring, and to conclude with the Benedicamus Domino and the Gospel of St. John. This decree, clear as it may appear, gave rise to another question about privileged octaves which exclude doubles, which was afterwards proposed to the Sacred Congregation of Rites, and to which an answer was given on the 20th April, 1822, in the Decree 4437, already quoted, question 5.

Gardellini, in a valuable note, explains the matter fully, and we quote his words on the subject:—

“Hisce decretis compositae quaestiones omnes videbantur: secus tamen accidit, nam nova excitata sunt dubia. Quippe nonnulli sunt, qui opinantur Missam hanc dici posse etiam diebus qui excludunt duplicia per annum, praesertim vero infra octavam Epiphaniae, in vigilia Pentecostes et infra octavam privilegiatam sanctissimi Corporis Christi. In hac autem opinione versantur quia in primo illo Decreto dies isti expressim et nominatim non excipiuntur. Ast hi errant quam maxime. Non enim declaratione indigebat id, quod sub generali prohibitione, utpote a Rubricis jam vetitum continebatur. Jubet Decretum, ne Missa nuptiarum celebretur in duplicibus primae vel secundae classis sed vult ut in huiusmodi occurso solam obtineant commemorationem: ergo includit in regula etiam dies, in quibus

per easdem Rubricas fieri nequit Festum duplex secundae classis vel occurrens vel translatum si in octava Epiphaniae duplicia isthaec non admittuntur, potiori jure nec Missa votiva privata non obstante Indultu admitti poterit, utpote quae in occurso hujusmodi duplicium celebranda non est”.

We must refer our readers to this very instructive note of Gardellini, which we regret we cannot insert here in full, owing to its great length. Indeed it is not necessary to do so, inasmuch as the answer given to the question 5 in the Decree 4437, already quoted, puts an end to further discussion, and settles the question definitively.

There are other questions connected with the ceremony of marriage, but we must reserve them for another occasion.

[pg 385]

Correspondence.

I. The See Of Down And Connor.

To the Editors of the Irish Ecclesiastical Record.

GENTLEMEN,

In the March number of your valuable periodical there was a most interesting paper on the See of Down and Connor. I apprehend, however, it contained a few slight mistakes, which I would have pointed out, but hoped that some person more intimately conversant with the subject would have done so in your April number. Such not having been the case, I shall endeavour to do so. However, before entering on these matters, I beg to say, in illustration of your learned contributor's notes, that the "*Ecclesia de Rathlunga*", of which Bishop Liddell had been rector, is now called Raloo, and lies between Larne and Carrickfergus, in the county of Antrim (see Reeves, p. 52); that *Lesmoghlan*, of which Bishop Killen had been pastor, still bears the same name, forming a sub-denomination of the parish of Ballykinler, county Down (*Ib.*, p. 28); that *Arwhyn*, of which John of *Baliconingham* (now Coniamstown, near Downpatrick) was rector, is now the mensal parish of Ardquin, in the barony of Ardes, county Down (*Ib.*, p. 20); and that *Camelyn*, of which Bishop Dongan was pastor, is now called Crumlin, being united to the parish of Glenavy, near Lough Neagh, county Antrim (*Ib.*, p. 4). Returning from this digression, it is quite plain from the Bull dated June, 1461, given by De Burgo (*Hib. Dom.*, p. 474), and cited by your contributor, p. 267, appointing Richard Wolsey to the See of Down, that Wolsey was not the immediate successor of Bishop John, who died in 1450. It expressly states, as mentioned in the article, that the See was *vacant* by the death of THOMAS, last bishop of the canonically united dioceses of Down and Connor, repeating the same name in the body of the Bull. How this is to be reconciled with the statement that Wolsey was John's successor, I cannot say; but it follows, on the principle laid down by your contributor in ignoring John Logan, placed by Ware between William,

bishop from 1365 to 1368, and Richard Calf II., 1369, that we must have a Bishop Thomas between John and Richard Wolsey. Dr. Reeves (*Eccl. Ant. Down*, etc., p. 257), on the authority of this very Bull, has accordingly done so, marking him as succeeding in 1450, and [pg 386] the see vacant in 1451. He conjectures him to have been *Thomas Pollard*, who in 1450 was appointed custose of the temporalities. Dr. Cotton (vol. iii. p. 201) adopts this view without hesitation, and it would appear by a complaint of the beforementioned Bishop John, shortly after the union of Down and Connor in 1441, that even then Pollard claimed to have an apostolical provision for the See of Down (Primate Mey's *Registry*, cited by Reeves, p. 37; see also Harris's *Ware*, p. 203, where it is likewise mentioned that Pollard contested the See of Down with John of Connor, both carrying themselves as bishops thereof, Harris adding that it was thought Pollard was supported by the primate, and that it was only in 1449 Pollard lost his cause, just two years before Wolsey's appointment). It may be asked, had he a reversionary provision before the union was canonically effected? If not, is *Thomas* a misprint for *John* in the Bull? as we are aware that there are many typographical errors in the *Hib. Dom.*—for instance, as to *John* O'Molony, Bishop of Killaloe, who died circ. 1650, is in several places called *Thomas*.

The next bishop respecting whom I wish to make some observations is Eugene or Owen Magenis, appointed in 1541, and though I am not disposed to deal uncharitably with him, I have no doubt he was a “temporiser”, though he may have been secretly “orthodox”. Dr. M'Carthy (Dr. Kelly's *Essays*, p. 427), and Brennan, and Walsh, in their ecclesiastical histories of Ireland are compelled to come to the same conclusion; and upon the whole of his career I candidly confess I don't know what other result they could arrive at. I ground nothing on his being present, if he were present, at Queen Elizabeth's first parliament in 1560, which passed the Act of Uniformity, and required the oath of supremacy to be taken by all ecclesiastics; for even if he had been present, there is no documentary evidence extant showing how those in attendance voted, and those acquainted with Irish history know on the authority of Archdeacon Lynch that these acts were hurriedly and surreptitiously passed on a day when they were not expected to be brought forward, and in a thin packed house. But it appears, so far as his public acts are reported, that he submitted in matters of ecclesiastical discipline to all the rapid changes and schisms which the fertile

imaginings of the pseudo-reformers introduced during the Tudor reigns. He surrendered his bulls to Henry VIII., obtained from Paul, “Bishop of Rome”, not “His Holiness”; took out pardon for accepting them, with a new grant of the see, with the archdeaconry and confirmation of the parishes of Aghaderg and Anaghlone, parishes to which *he had been* promoted by the Primate in 1526 and 1528. It is an oversight to suppose that about 1541 and 1543 the [pg 387] northern chieftains who submitted to Henry VIII. were exempted from all pressure in matter of religion. Cox (*Aug. Hib.*, vol. i. p. 272) writes that the king about that time caused all the Irish who submitted to him to renounce the “Pope's usurpations, and to own the king's supremacy by indenture”, among others, stating that O'Neill did so, January, 1542, all the indentures being registered in the Red Book of the Exchequer. The articles of Con O'Neill's submission are printed in vol. iii. part iii. p. 353, of the *State Papers of Henry VIII.*; and by the second article, he expressly renounces obedience to the Roman Pontiff and his usurped authority, and acknowledges the king to be the supreme head of the Church in England and Ireland, immediately under Christ. Manus O'Donnell, 3rd June the preceding year, in his letter styles the king on Earth immediately under Christ supreme head of the Church of England—(*Ib.*, p. 217). M'Donell, captain of the galloglasses, goes further, and promises to annihilate and relinquish the usurped authority of the Bishop of Rome; and his adherents and abettors will expel, extirp, and diminish, etc.—(*Ib.*, p. 383). Redmond MacMahon, captain of the Farney, 30th December, 1543, also renounces the usurped authority of the Roman Pontiff—(Shirley's *Farney*, p. 40). Even in the reign of Queen Mary, we find Owen Macgenis, of Iveagh, chief of his sept and captain of his country, binding himself not to admit any provisions from Rome, but oppose them all he could—(Cox, i. p. 299). No doubt these indentures were extorted by necessity from these chiefs, who scoffed at the idea that Henry had any religion or was the head of any church, and kept the articles just as long as they could not help it. Dr. M'Carthy, I presume on the ground of Bishop Magenis suing out pardon in Queen Mary's reign, considers he afterwards “repented”, being made a privy councillor and governor of his country; but then we have two similar acts of repentance in Elizabeth's reign, for he took out the royal pardon, 1st May and 25th October in her first year, thus atoning for his folly in her predecessor's. If he lived till 1564, as Dr. Moran (*Archbishops of Dublin*) supposes—though I consider he was dead in 1563, from the queen's letter,

dated 6th January, 1564, naming James M'Caghwell to the see, then “destitute of an incumbent”, and also from the fact of Shane O'Neill applying for the see for his brother, 1563-4—then, knowing that the greater parts of the counties of Down and Antrim were, in the early years of Elizabeth's reign, completely under subjection to the English, and coupling this with the solicitation of the royal pardons, the least that can be said is, that Bishop Magenis acquiesced in or tacitly submitted to the ecclesiastical changes enacted in the parliament of 1560, not [pg 388] forgetting that about the same time Andrew Brereton, governor of Lecale (called Britton by Anthony Bruodin, in Dr. Moran's *Archbishops of Dublin*, p. 142), mercilessly strangled John O'Lochran and two other Franciscan friars, in Downpatrick. But I have reserved for the last the conduct of Bishop Magenis in the reign of Edward VI. On the 2nd of February, 1552-3, he assisted George Brown of Dublin in *consecrating* Hugh Goodacre to be Archbishop of Armagh, and *John Bale* to be Bishop of Ossory, according to a new-fangled form annexed to the second Book of Common Prayer of Edward VI., which was not even authorised by act of parliament, nor by any order of the king (Mant, vol. i. p. 219)—as an Erastian church would require—which was opposed by the Catholic clergy at the time, and afterwards, in the reign of Queen Mary, condemned by all the Catholic bishops of England as invalid, defective in matter, form, and intention. And who was this John Bale whom Bishop Magenis assisted in *consecrating* by this vitiated rite? He, according to Pits, as quoted by Harris (Ware's *Bishops*, p. 417), was “an English Heretick, an apostate Carmelite, and a married priest. This poor wretch, except his calumnies against men and his blasphemies against God and his saints, hath nothing in him worthy to be taken notice of”. Condemned by his brother Protestants, Vossius, Wharton, etc., for his acrimony and falsehood, it is little wonder the Catholics, on the death of Edward VI., chased him from Kilkenny. Had his “King Johan: a play, in two parts”, published by the Camden Society in 1838, been known in his lifetime, in which drama he apotheosises that merciless tyrant, alike despicable, cruel, and infamous, the murderer of his own nephew, as a great reformer, “the model of every virtue, human and divine”, it would have completed his infamy and disgrace. No earthly fears should have prevailed on an orthodox bishop to pretend to consecrate a man whose life was such a disgrace to religion. I do not lay much stress on the formal words of the Bull appointing Myler Magrath to these sees, 12th October, 1565, vacant

per obitum Eugenii Magnissae: it simply shows he was not deposed, and it may have been with him as with his successor, that hopes were entertained for some years that he would abandon his state conformity, which I trust was the case. The astute and wily ministers of Elizabeth at this early date did not compel apostacy, nor seek for purity of morals; though apostates themselves, all they required was outward conformity, that the elect should take investiture from the crown. They bided their time.

It is questionable but that Sir James Ware knew Bishop Dougan had been Bishop of Soder and Man, for in one of his MSS. in Trinity College Library, cited by Reeves, p. 177, he [pg 389] writes of John Duncan, Archdeacon of Down, in 1373, “Factus Episcopus Sodorensis sive Insular. Manniar, 1374”; the different spelling of the name, and the great age Dr. Dougan must have attained before his elevation to Down in 1394 (living till 1412), may have induced him to doubt the identity.

I am delighted to learn that we are to have these valuable papers with others on the succession of the Irish sees, published in a separate volume; and were I permitted to offer a suggestion, I would recommend that the succession should be brought down to the period of the Confederation of Kilkenny, when all the sees, with the exception of Derry and Dromore, were, I think, full. Enriched with a few biographical notes, such a work would be a valuable accession to Irish ecclesiastical history, and would, besides, utterly shatter the vain and fanciful theories of Mant, Palmer, etc., as to apostolical succession through the puritanical Adam Loftus, the apostate rector of Outwell, in Norfolk, to which he had been appointed in 1556—(Cotton's *Fasti*, v. p. 197).

I omitted to ask if it can be explained why Myler Magrath, in his letter of 24th June, 1592, given *in extenso* by Father Meehan in Duffy's *Hib. Magazine*, March, 1864, calls, “Darby Creagh”, Bishop of Cloyne, his cousin. Dermot or Darby Creagh, or Gragh, or MacGragh, or M'Grath—for by these various names he is called, is stated in the paper on Cork and Cloyne in your last number to be a native of Munster; whereas Myler Magrath was eldest son of Donogh, otherwise Gillagmagna Magrath, of Termon Magrath, county of Fermanagh, of which the family had been erenachs. He married Anne O'Meara, by whom he had five sons—Terence,

alias Tirlagh, Redmond, Barnaby, *alias* Brien, Mark, and James, besides two daughters, Cecily or Sheelagh, married to Philip O'Dwyer, and Eliza or Ellis, married to Sir John Bowen. How came the relationship? I don't understand why Myler is named as the foster-brother of the great Shane O'Neill. The latter was fostered by the O'Donnellys of Tyrone, and hence frequently styled Shane Donnellagh. Terence Donnelly, alias Daniel, Dean of Armagh, was his foster-brother.

J. W. H.

April 8, 1865.

II.

To the Editors of the Record.

GENTLEMEN,

The following remarks on a subject of great importance to the priests of the mission may not be uninteresting to the readers of the *Record*. My attention was directed to the matter on reading the erudite work of Dr. Feye, of Louvain, on Matrimony.

[pg 390]

The opinions of St. Liguori are looked upon as possessing high authority, and, as every one knows, very justly so. Hence it is that he is copied even in the casual mistakes he made; and all the casuistical works recently published have inserted in their pages those mistakes. Take, for example, the works on moral theology most in circulation at present, such as the works of Gousset, Gury, Scavini, and it will be found that in the very latest editions of these works those errors are left untouched.

At page 591, n. 876, of Gury, 13^d ed., it is remarked regarding the *gradus inaequalis consanguinitatis, vel affinitatis*, that for the validity of the dispensation it is not required to mention in the petition the *gradus remotior* “nisi sint conjuncti secundo gradu attingente primum”. In the “Casus Conscientiae” he makes the very same observation. If the reader refer to Scavini he will find the same opinion adopted. It will appear from the remarks of Card. Gousset, t. 2, n. 1136, that he adheres to the opinion of St. Liguori.

At page 118, l. 6, t. 6, n. 1136, St. Liguori treats of the question, and cites the Breve of Benedict XIV., “Etsi Matr.”, of 27th September, 1755, upon

which he remarks, “*Matrimonium esse quidem illicitum sed non invalidum modo propinquitatis non sit 1^{mi} aut 2^{di} gradus consanguinitatis*”.

Now it is certain that Benedict XIV. held no such opinion, for in sec. 6 he expressly states, after St. Pius V., that the omission of the first grade *alone*, in the petition for dispensation, *invalidates* the dispensation. Again, Benedict XIV. in that Breve is speaking *de duplici* gradu consanguinitatis, not *de secundo gradu*, and states that a dispensation would be null, in the petition for which only one vinculum was expressed, whereas there existed two—duplex vinculum.

I believe St. Liguori was led into the mistake either by confounding the word *duplex* with *secundum*, or by the remarks made by Benedict *de tertio gradu propinquiore*, etc., of which there was question.

Gury's opinion also is wrong; for it is certain, from the decree of St. Pius V., as cited and confirmed by Benedict XIV., that the suppression of the mention of the first grade in the petition for dispensation in *gradu inaequali consang. off.*, will equally annul the dispensation, whether the first grade concur with the second, third, or fourth.

In order then that St. Liguori's opinion be correct, it is necessary to erase the words “aut secundi” from the sentence.

Expecting you will give insertion to the foregoing observations, which are made through a desire to serve the *Record*, and give a hint to fellow-labourers in the vineyard,

I remain, Gentlemen, respectfully yours,

W. Rice, C.C., Coachford.

Documents.

I. Letter Of The Cardinal Prefect Of Propaganda To Dr. Troy, 1782.

Illustrissimo e Reverendissimo Monsignore Come Fratello.

Essendosi prese in matura considerazione le risoluzioni emanate dall'Assemblea de' Vescovi Suffraganei di cod. Provincia Armacana radunata in Drogheda il dì 8. e 9. Agosto dell'anno scorso; questa S. Cong. di Propaganda dopo un lungo esame hà finalmente coll'oracolo di Nostro Sig. PP. Pio VI. pronunziato il suo guidizio sù le medesime e ne comunica specialmente a V S. come amministratore di cod. Metropolitana le sue determinazioni, perchè le faccia ben tosto partecipi ai Prelati sudetti. Si è in primo luogo pertanto riconosciuto, che a quest'assemblea non può darsi il nome di Sinodo Provinciale, essendo essa mancante di tutte quelle solennità, e forme che ai sinodi convengono, e specialmente dell'intervento del Capitolo della Chiesa Metropolitana, che dee sempre ai sinodi invitarsi, quando un immemorabile consuetudine non abbia a questo privilegio del Capitolo derogato. Mà quantunque non si possa dare a quest'adunanza de' Vescovi il carattere, e il vigore di sinodo provinciale, contuttociò la pubblicazione delle risoluzioni prese nella med. non potea farci senza il consenso, e approvazione della Sede Apostolica, poichè per i Decreti eziandio de' sinodi provinciali legittimamente convocati, e canonicamente tenuti, si chiede sempre, e si preserva l'approvazione della S. Sede prima di esigerne l'esservanza. L'esempio solo di S. Carlo Borromeo in tutti i sei Sinodi Provinciali di Milano può dar norma ai Vescovi come debbano regolarsi sù questo punto.

E incominciando dalla terza risoluzione emanata dai Vescovi sudetti questa è sembrata assai ambigua, ed oscura. La dispensa de' proclami per celebrare un matrimonio secreto può concedersi così dall'Ordinario dell'uomo, che della

donna, e si concede di fatti da quello, nella di cui Diocesi si contrae il matrimonio, siasi Ordinario dell'uno, o dell'altro de contraenti. Se dunque si è preteso di limitare questa facoltà al solo Ordinario dell'uomo, privandone l'Ordinario della donna, questa risoluzione non dee osservarsi, poichè è contraria ad ogni ragione canonica, e all'osservanza. Se poi si è voluto soitanamente intendere, che dopo essersi ottenuto questa dispensa dall'Ordinario dell'uomo, non faccia d'uopo di riportarla ancora da quello della donna allora la risoluzione potrà eseguirsi, e non merita riprensione.

La quarta però non ammette interpretazione, e debbe essere per ogni conto proscritta. Si è risoluto, che ogni dispensa dai gradi proibiti di parentela sia concessa dall'Ordinario di ciascuna parte contraente. Dovevano pur i Vescovi riflettere, che essendo la parentela un vincolo, che lega due persone, e impedisce, che trà loro si possa contrarre [pg 392]il matrimonio; subito che una di esse è sciolta da questo vincolo, ne viene in conseguenza, che ne sia prosciolta anche l'altra, non potendo restarne avvinta una, e libera l'altra. Se dunque per autorità legittima, o della Sede Apostolica, o di uno degli Ordinarij è tolto il vincolo di parentela trà un uomo, e una Donna, non vi è più bisogno di altra dispensa, ne fà, mestieri ricorrere all'altro Ordinario per ottenerla. Prego il Signore che La conservi e felicit.

Roma 30 Marzo 1782.

D. V. S.

Come Fratello,
L. CARD. ANTONELLI, Prefetto,
Stefano Borgia, *Segretario*.

Mons. Troy, Vescovo Ossoriense.

Amministratore di Armagh.

[TRANSLATION.]

Having taken into its careful consideration the resolutions adopted at a meeting of the Suffragan Bishops of the Province of Armagh, held last year at Drogheda, on the 8th and 9th of August, this S. Congregation of Propaganda, by authority of our Lord Pope Pius VI., after a protracted

examination, has finally given judgment thereupon. This judgment it now signifies to your lordship, as Administrator of that Metropolitan See, in order that you may speedily communicate to the above-mentioned Prelates the decision which it has been led to take. First of all, however, it has been established that the meeting cannot be called a provincial synod, seeing that it wanted all the formalities prescribed for the holding of synods, and especially the presence of the Metropolitan Chapter, which, when immemorial usage to the contrary has not interfered with its right, ought always to be invited to synods. But although this meeting of bishops may not claim the character or the authority of a provincial synod, nevertheless its resolutions could not be published without the consent and approbation of the Apostolic See, since the decrees even of provincial synods, lawfully convened and celebrated in canonical form, require at all times the approbation of the Holy See before their observance can be made obligatory. The example of St. Charles Borromeo in the Six Provincial Synods of Milan, is of itself a sufficient guide for Bishops in this matter.

In the first place, then, the third resolution passed by the above-mentioned Bishops appears very ambiguous and obscure. In case of a private marriage, both the Ordinary of the man and the Ordinary of the woman have power to dispense with the publication of the banns, and as a matter of fact this dispensation is granted by the Bishop in whose diocese the marriage is celebrated, whether he be the Ordinary of the one or of the other of the contracting parties. If, then, the sense of the resolution be to limit this power to the Ordinary of the man, to the exclusion of the Ordinary of the woman, the resolution ought not to be carried out, as being contrary to the canons [pg 393] and to custom. But if, on the other hand, the meaning be, that when once the dispensation has been obtained from the Ordinary of the man, there is no need to obtain it also from the Ordinary of the woman, the resolution thus interpreted may be put into practice, and is not deserving of censure.

The fourth resolution, however, cannot be softened by any interpretation. That resolution prescribed that every dispensation in prohibited degrees of relationship should be granted by the Ordinary of each of the contracting

parties. And yet the Bishops ought to have reflected that relationship being a bond which affects two persons, and prevents them from contracting matrimony one with the other, the moment one of these persons becomes free from this bond, the other, by a necessary consequence, is also set at liberty, it being impossible that one can be free whilst the other remains bound. Whenever, therefore, the bond of relationship between a man and a woman has been removed by lawful authority, either of the Holy See or of one of the Ordinaries, no second dispensation is required, nor is it necessary to have recourse to the other Ordinary to obtain such dispensation....

II. Decrees Granting An Indulgence To A Prayer To Be Said Before Hearing Confessions, And To A Prayer For A Happy Death.

Oratio recitanda ante sacramentales confessiones excipiendas.

Da mihi Domine, sedium tuarum assistricem Sapientiam, ut sciam judicare populum tuum in justitia, et pauperes tuos in judicio. Fac me ita tractare Claves Regni Coelorum, ut nulli aperiā cui claudendum sit, nulli claudam cui aperiendum sit. Sit intentio mea pura, zelus meus sincerus, charitas mea patiens, labor meus fructuosus. Sit in me lenitas non remissa, asperitas non severa, pauperem ne despiciam, diviti ne aduler. Fac me ad alliciendos peccatores suavem, ad interrogandos prudentem, ad instruendos peritum. Tribue, quaeso, ad retrahendos a malo solertiam, ad confirmandos in bone sedulitatem, ad promovendos ad meliora industriam: in responsis maturitatem, in consiliis rectitudinem, in obscuris lumen, in implexis sagacitatem, in arduis victoriam, inutilibus colloquiis no detinear, pravis ne contaminer, alios salvem, meipsum non perdam. Amen.

Urbis et Orbis. Decretum.

Ex Audientia Sanctissimi. Die 27 martii 1854.—Ad preces humillimas Reverendissimi Patris Jacobi Pignone del Carretto Clericorum Regularium Theatinorum Praepositi Generalis, Sanctissimus [pg 394] Dominus Noster Pius PP. IX. benigne inclinatus omnibus et singulis Confessariis in Universo Orbe Catholico existentibus supraenunciatam Orationem, antequam ad Sacramentales excipiendas Confessiones assideant, corde saltem contrito, et devote recitantibus centum dierum Indulgentiam semel tantum in die acquirendam, clementer est elargitus. Praesenti perpetuis futuris temporibus valituro absque ulla Brevis expeditione.

Datum Romae ex Secretaria S. Congregationis Indulgentiarum. F. Card. ASQUINIUS praefectus—Loco f. Sigilli.—A. Colombo secretarius.

Oratio Caroli Episcopi Cracoviensis pro impetranda bona morte.

O Maria sine labe concepta, ora pro nobis, qui confugimus ad Te, o refugium peccatorum, mater agonizantium, noli nos derelinquere in hora exitus nostri, sed impetra nobis dolorem perfectum, sinceram contritionem, remissionem peccatorum nostrorum, Sanctissimi Viatici dignam receptionem, extremae unctionis Sacramenti corroborationem, quatenus securi presentari valeamus ante thronum justae sedis et misericordiae Iudicis, Dei, et Redemptoris nostri. Amen.

Ex audientia Sanctissimi die 11 martii 1856.

Sanctissimus Dominus Noster Pius PP. IX. omnibus et singulis utriusque sexus Christi fidelibus, qui corde saltem contriti, ac devote supradictas pias preces, jam adprobatas, ab aeterna morte impetrandam recitaverint, centum dierum Indulgentiam semel in die lucrificandam, clementer est elargitus. Praesentibus, perpetuis futuris temporibus valituris.

Datum Romae ex Secretaria Brevium.—L. f. S. Pro D. Cardinali MACCHI.—Jo. B. Brancaloni Castellani *Sub.*

III. Decree Concerning The Prayer *Sacrosanctae Et Individuae Trinitati, Etc.*

Urbis et Orbis. Decretum. Cum Sacrae huic Congregationi Indulgentiis Sacrisque Reliquiis praepositae in una Melden. inter alia exhibitum fuisset dubium enodandum “An ad lucranda Indulgentiam vel fructum orationis *Sacrosanctae et individuae* etc. necessario flexis genibus haec oratio sit dicenda, vel an saltem in casu legitimi impedimenti ambulando, sedendo recitari valeat?” Eminentissimi Patres in generalibus Comitibus die 5 Martii superioris anni apud Vaticanas Aedes habitis respondendum esse duxerunt. “Affirmative ad primam partem, negative ad secundam”. Facta itaque Sanctissimo Domino Nostro Pio PP. IX. relatione per me infrascriptum S. Congregationis Secretarium die 12 ejusdem mensis, Sanctitas Sua votum Eminentissimorum Patrum approbavit. In audientia vero Sanctissimi die 12 [pg 395] Iulii ejusdem anni ab Eminentissimo Cardinali praefatae S. Congregationis Praefecto habita, eadem Sanctitas Sua ex speciali gratia clementer indulsit, ut Oratio *Sacrosanctae* etc. pro lucranda Indulgentia a Sa. Mem. Leone PP. X. adnexa, seu fructu dictae orationis, etiam non flexis genibus recitari possit ab iis, qui legitime impediti fuerint infirmitatis tantum causa. Praesenti valituro absque ulla Brevis expeditione, non obstantibus in contrarium facientibus quibuscumque.

Datum Romae ex Secretaria ejusdem S. Congregationis Indulgentiarum die 7 januarii 1856.—Loco † Signi.—F. Cardinalis ASQUINIUS, Praef.—A. Colombo Secretarius.

IV. Plenary Indulgences And The Infirm.

“Decretum Urbis et Orbis. Ex Audientia Sanctissimi die 18 Septembris, 1862.—Est hoc in more positum quod ab animarum Pastoribus Sanctissimum Eucharistiae Sacramentum in aliquibus tantum infra annum praecipuis festivitibus ad fideles habitualiter infirmos, chronicos, ob physicum permanens aliquod impedimentum e domo egredi impotentes solemniter deferatur, proindeque hujusmodi fideles tot Plenariis Indulgentiis privantur, quas consequerentur si conditionibus injunctis adimpletis ad Sacram Eucharisticam Mensam frequentius possent accedere. Itaque quamplures animarum Curatores, aliique permulti Ecclesiastici Viri humillimas preces porrexerunt Sanctissimo Domino Nostro Pio PP. IX. ut de Apostolica benignitate super hoc providere dignaretur, factaque per me infrascriptum Secretariae S. Congregationis Indulgentiarum Substitutum Eidem Sanctissimo de his omnibus fideli relatione in Audientia habita die 18 Septembris 1862, Sanctitas Sua spirituali gregis sibi crediti utilitati prospiciens clementer indulsit, ut praefati Christi fideles, exceptis tamen illis qui in Communitate morantur, acquirere possent omnes et singulas Indulgentias plenarias jam concessas vel in posterum concedendas, quasque alias acquirere possent in locis in quibus vivunt, si in eo physico statu non essent, pro quarum acquisitione praescripta sit Sacra Communio et visitatio alicujus Ecclesiae vel publici Oratorii in locis iisdem, dummodo vere poenitentes, confessi, ac caeteris omnibus absolutis conditionibus, si quae injunctae fuerint, loco S. Communionis et Visitationis alia pia opera a respectivo Confessario injungenda fideliter adimpleant. Praesenti in perpetuum valituro absque ulla Brevis expeditione. Non obstantibus in contrarium facientibus quibuscumque.

“Datum Romae ex Secretaria S. Congregationis Indulgentiarum et SS. Reliquiarum, Loco † Signi F. Card. Asquinius Praefectus. A. Archip. Prinzivalli Substitutus.”

[pg 396]

Notices Of Books.

I.

Appendix ad Rituale Romanum sive Collectio Benedictionum et Instructionum a Rituali Romano exsulantium, Sanctae Sedis auctoritate approbatarum seu permissarum, in usum et commoditatum Missionariorum Apostolicorum digesta. Romæ, Typis S. Con. de Propagande Fide, 1864.

This book has been compiled by authority, to serve as an appendix to the Roman Ritual, and is intended for the convenience of priests on the mission. In Ireland especially, where the Catholic instincts of the people have ever maintained pious confraternities in the honour which is their due, the clergy must have felt the want of a manual containing the *formulae* to be used in enrolling the faithful in the various religious societies approved by the Holy See. These forms are not to be found in the Roman Ritual, nor in the books easily accessible to the great body of priests. Besides, since every creature of God may be blessed by prayer, the Catholic Church, whilst she refuses to be reconciled with whatever is defective in modern progress, hastens, on the other hand, to sanctify by her blessing whatever this progress contains of good. Hence, new forms of prayer are rendered necessary from time to time, such as the form for blessing railways, and the *Benedictio ad. OMNIA*, to be used in blessing all objects for which a special benediction is not contained in the Roman Ritual. These forms are to be found in this appendix. The instructions which the Holy See issues from time to time on various subjects for the guidance of missionary priests, also find their place in this collection. Among them is the *Instructio*, issued by the Sacred Congregation of Rites, for those who have permission to say two Masses on the same day in different churches, and which is inserted in the *Ordo* for use of the Irish clergy. To this is added, in the book under notice, the *ritus servandus a Sacerdote cum utramque Missam in eadem Ecclesia offere debet*. It runs as follows:—

“Hoc itaque in casu Sacerdos post haustum in prima Missa diligenter Sanguinem Domini, omissa consueta purificatione, patena calicem et palla patenam tegens ac super corporale relinquens dicet junctis manibus: *Quod ore sumpsimus Domine*, etc. Deinde digitos, quibus SS. Sacramentum tetigit, in aliquo vase mundo ad hoc in Altare praeparato abluet, interim dicens *Corpus tuum Domine*, etc., abstersisque purificatorio digitis calicem velo coöperiet, velatumque ponet super corporale extensum. Absoluta Missa si nulle in Ecclesia [pg 397] sit sacristia calicem eodem modo super Altare relinquet; secus vero in Sacristiam deferet, ibique super Corporale vel pallam in aliquo loco decenti et clauso collocabit usque ad secundam Missam, in qua, cum eodem calice uti debeat, ilium rursus secum deferet ad Altare, ac super corporale extensum reponet. Cum autem in secunda Missa Sacerdos ad Offertorium devenerit, ablato velo de Calice hunc parumper versus cornu Epistolae collocabit sed non extra corporale, factaque hostiae oblatione cavebit ne purificatorio extergat calicem, sed eum intra corporale relinquens leviter elevabit, vinumque et aquam eidem caute imponet, ne guttae aliquae ad labia ipsius Calicis resiliant, quem deinde nullatenus ab intus abstersum more solito offeret.”

The contents may be reduced to three heads. The first regards the sacraments, and embraces a short form for blessing the baptismal font; the rite of confirmation when administered by a simple priest by delegation from the Apostolic See; instruction for priests who duplicate; manner of carrying the Eucharist in secret to the sick among unbelievers; decree of the Sacred Congregation of Rites concerning the oil for the lamp of the Blessed Sacrament. The second contains various forms of blessing, twenty-two in number, and including those for erecting the Via Crucis, and for enrolling in the scapulars of the different orders. The third part contains the ceremonies appointed by Benedict XIII. to be performed in the smaller parish churches on the great festivals of the Christian year.

II.

Popular Objections against the Encyclical. By. Mgr. de Segur. Authorized Translation. Dublin: John F. Fowler, 3 Crow Street.

We are delighted to welcome this little work, both for the sake of its own proper merits, and because it is the first instalment of the authorized translation of the admirable works of Mgr. de Segur. The Encyclical and Syllabus still continue to be the great event of the day. Indeed, as yet, we see only the beginnings of the influence it is surely destined to exercise on men's minds; and for the due development of that influence, works like this of the French prelate are very necessary. The docile Catholic, for whom St. Peter lives and speaks in Pius IX., will find set forth herein the majesty and beauty of the doctrine he had before received in simple faith. The Catholic whose mind has been coloured for good and evil by modern ideas, and who has felt alarm at the apparent contradiction between the teaching of the Pope and certain social doctrines he has long held to be as sacred as first principles, will find in these pages wherewith to calm his apprehensions and steady his judgment [pg 398] He will see that what the Church condemns is already condemned by reason and history; and that, far from placing under the ban any of the elements of true progress, the Holy See censures the very errors which make all true progress impossible. The priest who has charge of the wise and the unwise together, will be glad to have, in these few pages, what may enable him to provide for the wants of both. We quote a few passages:—

The Pope Condemns Liberty Of Conscience.

You mean to say “the liberty of having no conscience”, or, what is much the same thing, “the liberty of corrupting or poisoning one's conscience!” You

are right; the Pope is the mortal enemy of a liberty so shocking. What good father would leave his son the liberty of poisoning himself?

It was Protestantism which invented, and it is the Revolution which has perfected, what unbelievers call liberty of conscience. It has become an essential part of *progress*, of that anti-Catholic *progress* of which we were speaking just now, and which has insinuated itself into all modern constitutions....

The liberty of following one's conscience, even when it is misguided, is not the liberty of conscience condemned by the Encyclical Letter. Catholics, Protestants, Jews, and all men, of whatever denomination or sect they may be, are obliged to follow the dictates of their conscience; as long as they are misled *fairly*, it is but a misfortune; what the Church demands is that all men may escape this misfortune, and have full liberty of embracing truth, when once they have discovered it. The Pope condemns liberty of *conscience*, and not liberty of *consciences*. The one is very different from the other.

In Condemning Liberty Of Worship, The Pope Wishes To Oblige Governments To Persecute Unbelievers, Protestants, Jews.

The Pope desires nothing of all that, and those who say so, do not believe a word of what they advance. Pius IX. says simply to *Catholic* governments (and it is to them that he addresses himself): "There is but one true religion, because there is but one God, one Christ, one faith, one baptism, and this only true religion is that of the Holy, Catholic, Apostolic Church of Rome. If, in consequence of unfortunate circumstances, a Catholic government is obliged to put the Church on the same footing with false religions, such as Protestants, Jews, Mahometans, etc., it should bitterly regret such an unhappy state of things, and never consider it as permanent or lasting. Such conduct would be putting truth on a line with error, and despising faith.

"It is the duty of a really Catholic government to facilitate, *as much as possible*, to bishops and priests, the free exercise of their holy ministry, in order that they may, by the zeal and persuasion of their charity, work more efficaciously for the conversion of heretics and other dissenters. It must hinder, *as much as circumstances and the laws of prudence will permit*, the extension of heresy; finally, it must [pg 399]endeavour, for its own

interest, as well as for that of the Church, to procure the inestimable advantages of religious unity and peace to its subjects”.

These are the matters that Pius IX. speaks of. He simply engages Catholic sovereigns to do for their subjects what every good father would do for his children and his servants; he does all in his power to render the knowledge and practice of religion easy for them; he removes as much as he can all that is capable of weakening their faith or of corrupting their morals; he tolerates the evil that he cannot prevent, but he never lets an opportunity pass without blaming this evil, and repressing that which he cannot extirpate entirely.

The Church employs gentleness and mildness in order to gain souls to God. Who would have ever thought of using violent measures to impose faith on men? Although the Catholic Church pities those who are misguided, and does all in her power to enlighten them, she respects their faith, when she knows them to be upright and honest. Intolerant and absolute in matter of doctrine, she is full of tender solicitude for her children.

III.

St. Patrick's Cathedral: How it was Restored. By a Catholic Clergyman.
Dublin: Duffy, 1865

Even in the days of St. Augustine, Catholic eyes had to behold scenes somewhat similar to the one in view of which this pamphlet has been written. Within churches once Catholic, Donatist bishops at that time held high festival, in the midst of solemn pomp, with mystic rite and sacred song. From episcopal chairs erected in opposition to those of the prelates in communion with the Roman Pontiff, "*that is to say*", explains St. Cyprian, "*with the Catholic Church*", intruded bishops counterfeited the preaching of the lawful pastors, and with many a text from Holy Writ, and with a plentiful use of holiest names, made a brave show of belonging to those whom the Holy Ghost has placed to rule the Church of God. But the make-believe was not successful. One glance at the religious system of these men and at the Catholic Church was enough to reveal the hollowness of their pretensions, notwithstanding the ecclesiastical air they so studiously cultivated. Hence St. Augustine thus writes about Emeritus, a Donatist bishop (for whom, perhaps, some worthy layman, not averse from proselytizing poor Catholics in the wild Numidian country about Cethaquenfusca, had restored one of the old cathedrals), "Outside the pale of the Church (Emeritus) may have everything except salvation. Honour he may have, a sacrament he may have, he may sing *alleluia*, he may answer *amen*, he may have the Gospel, he may both hold [pg 400] and preach faith in the name of the Father and of the Son and of the Holy Ghost; but nowhere save in the Catholic Church shall he be able to find salvation"—(*Epist. clii.*). And yet, at least in the beginning, the Donatists were but schismatics; their heresy was of somewhat later growth. How much stronger, then, becomes St. Augustine's argument when applied to the Established Church of our times, in which heresy and free-thinking have

ravaged whatever schism had spared! The pamphlet under notice in reality does but reëcho the holy Doctor's remarks. An outline of St. Patrick's life and faith, drawn from unimpeachable authorities, sets before us most clearly that the ancient Catholic Church of Ireland differed far more from the Church now usurping St. Patrick's Cathedral, than the ancient Catholic Church of Africa from the Donatist body. The personal history of our great apostle, his early training, his call to preach, his ecclesiastical studies, his mission from Rome, his doctrine about the Holy See, his essentially Catholic teaching, are all plainly and forcibly set forth, and contrasted with the peculiarities of modern Protestantism. No candid mind can for a moment hesitate to conclude with the writer, that the restoration ceremony was “a ghastly spectacle of *unreality*. It was a joyous revel over a *lifeless* form: the body was there, but not *the soul*. The beauty of early years, which is oftentimes observed to resume its place, in death, upon the face from which it had been long driven by weeks, or months, or, perhaps, years of pain, the beauty of graceful outline, and delicate feature, and placid, gentle expression—all that had come back; and the church seemed as if but yesterday finished. But the spirit of St. Patrick was not there; the creed which he taught was not there; the *true faith*, which is the soul, the animating spirit of religion, was far away”.

IV.

Vie et Institut de Saint Alphonse Marie de Liguori, Evêque de Sainte Agathe des Goths, et Fondateur de la Congregation du Tres-Saint Redempteur. Par son Eminence le Cardinal Clement Villecourt, 4 vols. Tournai: Casterman, 1864.

Of this excellent work we have only space to say at present that it is worthy of its eminent author, and not unworthy of the great saint whose life and virtues it sets forth. We hope to return to the subject at a future time.

Footnotes

- [1.](#) The reader must not be surprised at the name thus given to the See of Derry. Camden cites, from an ancient Roman Provinciale, the name *Rathlucensis* given to this see (Publications of I. A. S., 1843, pag. 61), and O'Sullivan Beare more than once designates the town of Derry by the Latin name *Lucas*, and styles its bishop “Dirii vel Luci Episcopus”—(*Hist. Cath.*, pag. 77, et passim).

2. The cubit was originally the length of the human arm from the elbow to the end of the middle finger. It is variously estimated at from 16 to 22 inches. Our readers may form an idea of the tabernacle and the court, sufficiently accurate for all practical purposes, by allowing one yard English for every two cubits. See Smith's *Dictionary of the Bible*, or his *Dictionary of Greek and Roman Antiquities*.
3. Our readers must not be surprised if in this and in other instances we depart a little from the reading of the Vulgate version, and adhere to the literal translation of the Hebrew text. In controversy it is often desirable to accommodate ourselves to the views and even to the prejudices of our adversaries; and since the authority of the Hebrew text is admitted by all classes of Christians, we appeal to it as a common ground of argument. Besides, when the point in dispute depends on the meaning of a Hebrew phrase, it will be always useful to have the *exact words* of the Hebrew text before our eyes.
4. This mode of expression is perfectly conformable to scriptural usage; for we read (*Numbers*, x. 3) that *all the assembly* (עֲדָה) were directed to assemble themselves *to Moses*: and again, (*III. Kings*, viii. 2) it is said that “all the men of Israel assembled themselves *unto King Solomon*”.
5. Nordheim's *Hebrew Grammar*, § 148; see also Gesenius, § 53, “*Significations of Hiphil*. It is properly *causative of kal*.”
6. Accordingly, this is the first meaning given for the word by Gesenius in his *Lexicon*. In this sense, too, it is frequently employed in the Mosaic narrative. Here are two examples, taken almost at random, in which we find the same word in the same conjugation, mood, and tense: When Joseph, in prison, asked the chief butler of Pharaoh to intercede for him with his royal master, he added: “And thou shalt *bring me* (וְהוֹצֵאתָנִי—vehotzethani) out of this prison”—(*Gen.* xl. 14). Will Dr. Colenso say that Joseph intended the chief butler should *carry him* out of prison *on his back*? Again, when the Jews murmured against Moses and Aaron in the desert, they cry out, “Ye have *brought us forth* (הוֹצֵאתֶם—

hotzethem) into this wilderness to kill the whole multitude with hunger”—(*Ex.* xvi. 3; also xiv. 11). They surely did not mean to say that Moses and Aaron had *carried* the whole multitude out of Egypt *on their backs*.

- [7.](#) “Clove”=Cloyne, Rymer's *Foedera*. Tom. v. par. iv. p. 105; Lib. Mun. Tom. i. par. iv. p. 102.
 - [8.](#) “Maccarthy=Carthy=Macare=Machar”. Wadd. Annal. Min. ad *an.* 1340, n. 25, *ed.* Roman. Tom. viii. p. 241; *ibid.* Tom. xiii. p. 432, et pp. 558-9.
 - [9.](#) “Kings of the M'Carthy race”, Annals of Innisfallen, ad *an.* 1106, p. 106, *an.* 1108, 1110, 1176; Annals of Boyle, *an.* 1138, 1185; Annals of Ulster, *an.* 1022-3, 1124; Gir. Cambr., lib. i. cap. iii.; S. Bernard, in Vit. Malac., cap. iv. “Their burial place”, Archdall Monast. Hib., pp. 302, 303.
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